

Lecture 16

Structure of State: Conceptual Framework

Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Recall the definition of the state and its four essential elements.
- Differentiate between state and government in terms of their nature, functions, and continuity.
- Explain the structure of the state and describe the functions of its main organs: legislature, executive, and judiciary.
- Discuss the concepts of separation and concentration of powers with relevant examples from state systems.
- Analyze the system of Checks and Balances in the constitutional framework of states.

Introduction

The structure of the state provides a conceptual framework for understanding how political power is organized, distributed, and exercised within a society. It includes the essential elements of the state: population, territory, government, and sovereignty as well as the distinction between the state and government. It also explains the three organs of the state: legislature, executive, and judiciary, along with the principles of separation and concentration of powers. In addition, it highlights the mechanism of checks and balances, which ensures accountability and prevents the misuse of authority.

Understanding the Structure of State

Definition and Purpose of State

Harold J. Laski's definition of the State emphasizes that "Every state in the modern world is a territorial community in the name of which some agent or agents exercise sovereignty. By sovereignty is meant the legal competence to issue orders without a need to refer to a higher authority. The orders so issued constitute law, and are binding upon all who come within their jurisdiction".

In general, a state is a politically organized community of people living within a defined territory under a government that exercises sovereignty. It is different from society or nation because a state must have four essential elements: population, territory, government, and sovereignty. Without these elements, a state cannot exist as a legal and political authority.

The purpose of the state is to organize collective life and maintain order in society. It provides laws, institutions, and authority through which people live peacefully and securely. The state protects citizens from internal disorder, crime, violence, and external threats. It also provides justice through courts and legal institutions. The shadow of the state falls upon almost every human activity.

Beyond maintaining law and order, the state performs a wide range of welfare and developmental functions. In Pakistan, these responsibilities are exercised through constitutional institutions such as the legislature, executive, and judiciary, as well as administrative structures including the civil service, provincial governments, and local governments. Together, these institutions work to ensure governance, public service delivery, accountability, and socio-economic development.

In addition to maintaining order, the state protects fundamental rights and outlines the duties and responsibilities of its citizens. It gives citizens legal identity, political participation, and constitutional protection. In Pakistan, the Constitution of 1973 serves as the supreme legal framework for the exercise of state authority. Within this constitutional order, the state seeks to maintain stability, protect national sovereignty, uphold justice, advance public welfare, and organize society through the rule of law and constitutional governance.

Essential Elements of a State

A state has four essential elements: population, territory, government, and sovereignty. The state is a political association that exercises sovereign jurisdiction within defined territorial borders. In contrast to government which is merely one of its parts the state encompasses all public bodies and exercise impersonal authority on the basis of assumption that it represents the permanent interests of society. A state can exist as an independent political entity only when it possesses four essential elements.

- I. **Population:** Population means the people living in a state, connected through citizenship, law, and political identity despite differences of religion, language, culture, or region. Population size differs from state to state; India and China have very large populations, while Vatican City has one of the smallest populations. A population becomes a source of strength when it is educated, skilled, healthy, and productive, contributing to national development. Vice versa, when it is uneducated, unemployed, and unhealthy, it becomes a burden on the state. In Pakistan's context, its large youthful population can become a major national asset if developed through education, skills, healthcare, employment, civic sense, and national unity. There is no fixed minimum or maximum population required for a state; however, the population must be sufficient to sustain governance and ensure the functioning of political and administrative systems. Ancient philosophers such as Plato proposed an ideal population of about 5,040 citizens, whereas Aristotle argued that a state should have a population large enough to achieve self-sufficiency but small enough to allow effective administration and maintain political order.
- II. **Territory:** It is the fixed geographical area of a state, including land, rivers, mountains, deserts, coastal areas, natural resources, and airspace within recognized boundaries. It is essential for statehood because all authority, laws, defence, and sovereignty operate within it. States vary in size, from large countries like Russia and China to small ones like Vatican City, but importance depends on strategic and economic value rather than size alone. Territory is a strength when it is resource-rich, fertile, strategically located, and connected to trade routes, while it becomes a weakness when it is landlocked, resource-poor, disputed, or difficult to manage. Access to the sea generally provides advantages in trade and

connectivity, while landlocked states may face limitations but can still progress through cooperation and effective policies.

III. **Government:** It is the 3rd element of State. **Aristotle says** “Government is the supreme authority within a state which rules over its citizens and ensures the good life.” Government is the institutional authority of the state that formulates and enforces laws, maintains order, and ensures the welfare of citizens.

Government maintains order, protects citizens, collects taxes, provides services, promotes welfare, and represents the state internally and externally. Governments are generally classified into different types such as democracy, monarchy, dictatorship, theocracy, and republic, depending on how authority is exercised and who holds power in the state. In a democracy, power rests with the people through elected representatives. For example, Pakistan has a federal parliamentary democratic system where the Prime Minister is the head of government and Parliament plays a key role in law-making under the Constitution. In contrast, the United States follows a presidential system in which the President is both head of state and government, and there is a strong separation of powers between the executive, legislature, and judiciary.

Sovereignty: It is an essential element of state. It means the supreme authority of the state and is directly linked with state power. It gives the state final authority to make laws, enforce decisions, maintain order, protect borders, conduct foreign policy, and represent itself internationally. Its main attributes are supremacy, permanence, universality, indivisibility, independence, exclusiveness, and legality.

Sovereignty has two dimensions;

1. **Internal Sovereignty**, which means final legal and political authority over all individuals within the territory.
2. **External Sovereignty**, which means independence in relations with other states.

Sovereignty is the supreme authority of the state to govern itself without internal or external interference. It has different dimensions, including **legal sovereignty**, which refers to the authority recognized by law to make and enforce laws; **political sovereignty**, which refers

to the ultimate source of political power, usually the people; and **popular sovereignty**, the principle that state authority derives from the consent of the people. Sovereignty enables a state to exercise independent control over its territory, population, and government.

For instance, Pakistan is considered a complete state because it possesses all four elements. In contrast, Somaliland has a defined population, territory, and functioning government, but it lacks widespread international recognition and full external sovereignty. Therefore, it is often described as a de facto state rather than a fully recognized sovereign state.

Distinction between State and Government

The **state** and the **government** are closely related but distinct concepts in political science. The state is a permanent political and legal organization, while the government is its working machinery that operates it. The government is considered the 'brain' of the state, responsible for making and implementing state policies and it perpetuates state's existence. According to J. W. Garner, "Government is the agency through which the will of the state is formulated, expressed, and realized." The principal differences between the State and the Government are following;



Basis	State	Government
Nature	It is a permanent political and legal entity. It is an inclusive association that encompasses all the institutions of the public realm and embraces all the members of community	It is a temporary administrative institution. Systems of government can be reformed and remodeled.
Composition	Includes population, territory, government, and sovereignty	Only one part of the state
Authority	Has supreme sovereignty Absolute and unlimited authority	Exercises authority on behalf of the state
Continuity	It remains permanent even when governments change.	It changes through elections or other political processes within the time-frame prescribed by the constitution.
Function	Provides overall framework of political system It represents the permanent interests and collective will of the individuals of society.	Implements laws and runs day-to-day administration It represents the political preferences of those who are in power at a given time.
Examples	Pakistan and United States (as a state)	Government of Pakistan and Government of United States (e.g., elected leadership and institutions)

Table: 16.1 Distinction between the State and the Government

Organs of the State and Their Functions

The state performs its functions through three principal organs: the legislature, executive, and judiciary. Each organ has distinct responsibilities, but all work together to ensure effective governance, administration, and justice.

1. Legislature: The Organ Responsible for Representation and Law-Making

The legislature is the law-making organ of the state and the representative voice of the people. In a democracy, laws are enacted through elected representatives rather than the personal will of rulers. Its primary functions include making laws, representing public interests, approving public policies and budgets, and holding the executive accountable through oversight and debate. In this way, the legislature serves as a vital link between public opinion and state policy.

Parliament in different countries may be either unicameral (one house) or bicameral (two houses), depending on the constitutional structure of the state. In bicameral systems, it consists of a lower house that represents the people and an upper house that represents regions or Provinces. For instance, Pakistan and India have bicameral legislatures consisting of two houses: a lower house (National Assembly in Pakistan and Lok Sabha in India) and an upper house (Senate in Pakistan and Rajya Sabha in India).

2. Executive: Implementation of Laws and State Administration

The executive, as the second branch of the state, is responsible for implementing laws passed by the legislature and managing the administration. It translates laws and policies into practical action through various institutions, departments, and officials. Without the executive, laws remain ineffective as they cannot be enforced or applied in a society.

In Pakistan's parliamentary system, the Prime Minister is the head of government, and the Cabinet assists in policy-making and administration. The executive includes federal and provincial ministers, civil services, police, administrative departments, and public agencies. It maintains law and order, collects taxes, prepares budgets, implements development projects, manages public services, responds to emergencies, and protects national security. However, it must remain within constitutional and legal limits and must answer for its performance before representative and judicial institutions.

3. Judiciary: Interpretation of Laws and Dispensation of Justice

Judiciary the branch of Government, and the system of courts that interprets laws and provides justice. It is the body of judges in a constitutional system. The power, authority and role of judiciary may vary from country to country. but It resolves disputes between individuals, between citizens and the state, and among different institutions. It also safeguards constitutional rights and ensures that all state institutions operate within legal limits. The judiciary plays a vital role because laws require interpretation, and they may be understood differently by individuals and institutions.

In Pakistan, the judiciary is constitutionally independent, meaning it is separate from the executive and legislature. It is responsible for interpreting laws, protecting fundamental rights, and ensuring justice without external influence or pressure. Courts protect citizens when rights are violated. If a person is illegally detained, courts may order relief. If a public authority misuses power, courts may examine the legality of that action. In the Constitution of Pakistan, equality before law is guaranteed under Article 25, which states that all citizens are equal before the law and are entitled to equal protection of the law.

Interdependence and Coordination of State Organs

The legislature, executive, and judiciary are separate organs of the state, but they function in close coordination and interdependence to ensure effective governance. Each organ performs its specific role law-making by the legislature, implementation by the executive, and interpretation by the judiciary while also cooperating and exercising checks on one another to maintain balance and accountability. This relationship ensures that state institutions work smoothly within the constitutional framework.

This discussion leads to the concept of **separation of powers and concentration of power**, which explains how authority is distributed among different organs to prevent the misuse or over-centralization of state power.

Separation and Concentration of Powers

The theory of separation of powers, introduced by the French philosopher Montesquieu, states that the three organs of the state the Legislature (law-making),

the Executive (law-enforcement), and the Judiciary (law-interpreting) must remain independent of one another. If these powers are combined in the same hands, liberty is destroyed. The purpose of this separation is to create a system of checks and balances, where no single organ becomes too powerful or develops tyrannical authority.

In contrast, the theory of concentration of powers (or fusion of powers) argues that the Executive and Legislature should work together rather than remain isolated. The executive emerges from the Legislature and is accountable for it. This ensures harmony, efficiency, and quick decision-making, as the same team both makes and implements laws.

These two theories directly shape the structure of governments worldwide.

In a Presidential form of Government, such as the United States, the theory of separation of powers is strictly applied. The President is elected separately and heads the Executive. The Congress makes laws. The Supreme Court interprets the constitution. Members of the Executive cannot sit in the Legislature. Each branch acts as a check on the other: the President can veto laws, Congress can impeach the President, and the Judiciary can declare laws unconstitutional. This prevents dictatorship but may create deadlock between branches.

In a Parliamentary form of Government, such as the United Kingdom and Pakistan, the theory of concentration of powers is applied. The Prime Minister and the Cabinet are members of Parliament. The Executive is drawn from and remains answerable to the Legislature. This fusion allows smooth governance because the government enjoys the confidence of the majority and can pass laws quickly. However, to prevent the abuse of this concentrated power, the Judiciary is kept strictly independent to protect the constitution and fundamental rights.

Under the 1973 Constitution, Pakistan follows a parliamentary system. The Prime Minister is the real executive, while the President is the constitutional head of state with ceremonial powers. The Prime Minister and Cabinet sit in the National Assembly and are collectively responsible for it.

Despite the fusion between Executive and Legislature, Pakistan maintains a separate and independent Judiciary. The Supreme Court and High Courts can exercise judicial review, striking down any law or executive action that violates the constitution. This ensures that even within a concentrated system, the rule of law remains supreme. Thus, in Pakistan, the three organs are separate in function but connected in governance, creating balance, accountability, and constitutional order.

Mechanism of Checks and Balances

Checks and balances is a constitutional mechanism in which the powers of the state are distributed among the legislature, executive, and judiciary, and each organ is enabled to limit, supervise, and hold the others accountable. The main purpose is to prevent the concentration of power and ensure that all institutions function within constitutional limits.

Key points of checks and balances:

- Prevents concentration of power in one institution
- Ensures accountability of all state organs
- Maintains constitutional supremacy and rule of law
- Promotes transparency and responsible governance
- Balances authority among legislature, executive, and judiciary

In Pakistan, this system operates through parliamentary control over the executive, judicial review by courts, constitutional limits on all institutions, and oversight by bodies such as the Election Commission and Auditor-General. Together, these mechanisms ensure balance, accountability, and stability in the state structure.

Conclusion

In conclusion, the structure of the state is based on a comprehensive constitutional and institutional framework that includes the elements of the state, the organs of government, the distinction between state and government, and the principles of separation and concentration of powers. The system of checks and balances further ensures that no organ becomes overly powerful. Together, these components promote effective governance, political stability, rule of law, and constitutional order, which are essential for the functioning of modern states.

Lecture 17

The Legislature in Pakistan

Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Define the concept, structure, and importance of the legislature in general and in Pakistan.
- Explain the composition, powers, and functions of Parliament, including the National Assembly, Senate, President, and Prime Minister under 1973 Constitution.
- Analyze the powers, and functions of the Legislature of Pakistan within the framework of the 1973 Constitution.

Introduction

The previous lecture on **State Structure** discussed the concept of the state, its elements population, territory, government, and sovereignty and the three organs of government: legislature, executive, and judiciary. This lecture focuses on the **Legislature of Pakistan (Parliament or Majlis-e-Shoora)**, the main law-making and representative body. It consists of the President, National Assembly, and Senate. The lecture covers its composition, functions, legislative procedure, committee system, financial powers, constitutional amendment process, parliamentary accountability, role of the opposition, and vote of no confidence. Understanding Parliament is essential for appreciating democratic governance, federal representation, constitutional supremacy, and the rule of law in Pakistan.

Note: In this lecture, the terms Legislature, Parliament, and Majlis-e-Shoora are used interchangeably.

Legislature: Meaning, Types and Importance

The term **legislature** is derived from the Latin words *lex* (law) and *latus* (to carry or propose), meaning a body that makes or enacts laws. As an institution, the legislature is a representative organ of government responsible for lawmaking, public representation, policy deliberation,

budget approval, and oversight of the executive branch. It serves as a forum where elected representatives debate national issues and formulate laws for the governance of the state.

Legislatures are generally classified into two main types:

1. Unicameral Legislature

A unicameral legislature consists of **one legislative chamber or house**. All legislative powers are exercised by a single representative body. This system is often adopted in smaller or unitary states (For example; New Zealand and China) because it is simpler, less costly, and allows for quicker lawmaking.

2. Bicameral Legislature

A bicameral legislature consists of **two legislative chambers**, usually known as the **Upper House** and **Lower House**. Laws generally require approval from both houses before enactment. Examples of bicameral legislatures include Pakistan, where Parliament consists of the National Assembly and the Senate and the United Kingdom, where Parliament comprises the House of Commons and the House of Lords. In each case, the two chambers work together in the legislative process while providing broader representation and checks and balances within the system of government. The choice of structure depends on population, federal or unitary character of the state, need for representation, and the desire to review laws carefully before final approval. Its advantages include wider representation, better review of legislation, protection of smaller units, and prevention of hasty law-making. Its disadvantages may include delay in legislation, higher cost, and possible disagreement between the two houses.

The legislature is a key organ of the state that represents the people's will, makes laws, and ensures accountability of the executive. It provides legal rules for governance, public order, taxation, rights, and administration. It also promotes transparency and democratic legitimacy, making it essential for the functioning of a constitutional state.

Parliament of Pakistan

The Parliament of Pakistan (Majlis-e-Shoora) is the supreme legislative institution of the country responsible for making laws, approving the budget, and overseeing the executive. Pakistan has adopted bicameral legislature under the 1973 Constitution, consists of the President, the National Assembly, and the Senate. As the cornerstone of Pakistan's parliamentary democracy, it represents both the people and the federating units of the state.

Evolution of the Legislature in Pakistan

The legislative system of Pakistan has evolved through different constitutional phases. After 1947, the Government of India Act 1935 served as the interim framework. The 1956 Constitution introduced a parliamentary system with a unicameral legislature, while the 1962 Constitution established a presidential system with a unicameral legislature where real executive authority was concentrated in the office of the President.. The 1973 Constitution restored parliamentary democracy and created a bicameral Parliament consisting of the National Assembly and the Senate. In Pakistan's federal system, the National Assembly represents population, while the Senate ensures equal provincial representation, promoting balanced decision-making, protecting smaller units, improving legislative scrutiny, and strengthening democracy.

Structure of the Legislature of Pakistan

The Legislature of Pakistan is bicameral, consisting of Upper and lower houses. It has three main components the President, the National Assembly, and the Senate.

The President of Pakistan

The President of Pakistan is the **federal executive head of state** and serves as a symbol of the federation's unity. Unlike the Prime Minister, the President's role is largely ceremonial under Pakistan's parliamentary system, though certain constitutional powers provide authority in specific circumstances.

Qualifications

- A candidate must be a Muslim, at least 45 years of age, qualified to be a member of the National Assembly, and not holding any office of profit under the government.

Elections

- The President is elected for a five-year term by an Electoral College consisting of members of the National Assembly, Senate, and 4 Provincial Assemblies under Article 41.
- The President is eligible for re-election to the president office but no person will be a President for more than two consecutive terms.

Tenure

- The President serves a fixed term of five years.

Removal or Impeachment

- The impeachment process is provided under Article 47 of the Constitution.
- If the President violates the Constitution, commits gross misconduct, or becomes incapable, a resolution can be initiated in either House of Parliament.
- If passed by a **two-thirds majority of the total membership of both Houses**, the President is removed from office.
- This ensures that the President is indirectly elected and remains accountable within the parliamentary system.

The Acting President performs the duties of the President when the office is vacant or the President is absent. The Chairman Senate acts as President, and if unavailable, the Speaker National Assembly assumes the role. The Acting President exercises all presidential powers temporarily and ensures continuity of constitutional and state functions until a new President is elected.

Duties and Legislative Powers of the President

The President is a constitutional component of Parliament under Article 50.

- He summons, prorogues, and dissolves Parliament on the advice of the Prime Minister.
- He may address Parliament and communicate policy priorities.
- He gives assent to bills passed by both Houses, which is necessary for law-making.
- Under Article 75, he may return an ordinary bill (except money bills) for reconsideration, but must assent if passed again.
- Under Article 89, he may issue ordinances when Parliament is not in session, which have temporary force of law.
- He ensures budget and financial legislation are presented before Parliament.
- Under Article 58(2)(b), he had discretionary power to dissolve the National Assembly, now repealed.
- He acts as a formal link between the executive and legislature, ensuring constitutional law-making.

The Prime Minister of Pakistan

The Prime Minister of Pakistan serves as the chief executive of the federal government under the parliamentary system and holds the real authority in the parliamentary system under the 1973 Constitution. He works in coordination with his Cabinet. The Prime Minister is responsible to the National Assembly and must maintain its confidence to remain in office.

Qualifications★

- Must be a Muslim according to constitutional requirements.
- Must be a citizen of Pakistan and a member of the National Assembly.
- Must be at least 25 years of age (minimum qualification to be an MNA).
- Must be elected as leader of the majority party or coalition in the National Assembly.

- Must be of sound mind and not disqualified by any law or court order.

Election

- The Prime Minister is elected by the **National Assembly under Article 91**.
- A simple majority of members present and voting is required.

Tenure

- The Prime Minister remains in office as long as he/she enjoys the confidence of the National Assembly.
- Can be removed through a vote of no confidence under Article 95.

Duties and Legislative Powers of the Prime Minister

- Leader of the majority in the National Assembly and key figure in law-making.
- Sets and controls the **legislative agenda** in Parliament.
- Government bills are introduced through ministers under his/her direction.
- Ensures passage of laws by maintaining **majority support**.
- Plays a central role in **budget approval** in Parliament.
- Coordinates parliamentary debates and party members for effective legislation.
- He/she has influence in **summoning or advising dissolution of the National Assembly**, affecting the legislative timetable.

Voter Qualifications in Pakistan

A person can vote to elect a member of the National Assembly if he/she is a Pakistani citizen, at least 18 years old, has a valid CNIC, is registered in the electoral roll of the constituency, and is not disqualified by law or declared of unsound mind.

Qualifications of the Members of the Parliament

A person to be elected as a member of Parliament must be a Pakistani citizen, at least 25 years old for National Assembly and 30 years for Senate, and a registered voter. He/she must be of good character with honesty and integrity, not of unsound mind or bankrupt, and must not hold

any office of profit under the government. All constitutional requirements under the Constitution of Pakistan and Election Act, 2017 must also be fulfilled.

The National Assembly

The National Assembly is the **lower house** of Parliament and represents the people of Pakistan. It plays a key role in law-making, especially financial legislation such as the budget and taxation.

- **Composition:** Members are directly elected from constituencies (Each Province) on the basis of population, along with reserved seats for women and non-Muslims. Therefore, provinces with larger populations receive more seats than smaller provinces.
- **Election:** Direct elections under the Election Act, 2017. Reserved seats are allocated to parties on proportional representation.
- **Term:** It is a temporary house with a five-year term unless dissolved earlier.
- **Speaker & Deputy Speaker:** Elected by the members of the National Assembly from among themselves. They preside over sessions and maintain order.
- **Removal:** Speaker or Deputy Speaker can be removed through a majority vote of the total membership of the Assembly.
- **Sessions:** Summoned by the President; must meet regularly, and gaps between sessions cannot exceed constitutional limits.
- **Quorum:** One-fourth of total membership is required to conduct proceedings.
- **Majority Vote:** Ordinary decisions and bills are passed by a simple majority of members present and voting.
- **Dissolution:** The President may dissolve the National Assembly on the advice of the Prime Minister under Article 58(1) of the 1973 Constitution; the President no longer has an independent power to dissolve the Assembly at discretion.

The Senate

The Senate is the permanent upper house of Parliament and represents the provinces equally, ensuring federal balance in legislation.

- **Composition:** Indirectly elected members representing provinces and federating units.

- **Election:** Members are elected by Provincial Assemblies and other constitutional bodies.
- **Chairman & Deputy Chairman:** Elected by the Senators from among themselves to preside over proceedings.
- **Removal:** Can be removed through a majority vote of the Senate.
- **Sessions:** Like the National Assembly, sessions are summoned and conducted under constitutional rules.
- **Quorum:** One-fourth of total membership is required.
- **Majority Vote:** Decisions are taken by a simple majority.
- **Dissolution:** The Senate is a permanent house and cannot be dissolved.

Table 17.1 Distribution of Seats in Parliament of Pakistan

House	Punjab	Sindh	Khyber Pakhtunkhwa	Balochistan	ICT	Women	Non-Muslims	Total
National Assembly	141	61	45	16	3	60	10	336
Senate	23	23	23	23	4			96

The seat distribution shown above reflects the composition of Parliament under the Constitution of Pakistan as applicable in 2026.

Note: In the National Assembly, seats of women and non-Muslims are reserved and allocated through proportional representation. *In the Senate, reserved seats for women and non-Muslims are included within the total provincial representation.

Powers and Functions of Legislature

In Pakistan's parliamentary system, both houses of Majlis-e-Shoora have equal powers of legislation, whereas National Assembly have more powers in financial matters. Budget is exclusively passed by National Assembly. some other functions and powers of Majlis-e-Shoora re as under:

Legislation

The core responsibility of the legislature is to legislate laws for the country. It includes making new laws to address emerging social, political, and economic needs of society. It also involves amending existing laws to update or improve them according to changing circumstances. In addition, the legislature has the power to repeal or remove outdated laws that are no longer relevant or useful. Through these functions, the legislature ensures that the legal system remains effective, modern, and aligned with the needs of the state and its people.

The legislative procedure in Pakistan begins with a bill, which is a proposed law introduced in Parliament to create, amend, or repeal existing laws. A bill may be introduced as a government bill or a private member bill. It becomes an Act of Parliament after passing through several constitutional stages, including readings, committee review, and approval by both Houses.

In the first reading, the bill is formally introduced. The second reading involves a general debate on its principles and objectives. During the committee stage, the bill is examined in detail, and amendments may be proposed. This is followed by the report stage and the third reading, where the final version is voted upon.

In Pakistan, an ordinary bill is passed by a simple majority (more than 50% of members present and voting), while a constitutional amendment bill requires a two-thirds majority of the total membership of each House. After approval by both Houses, the bill is sent to the President for assent under Article 75. Once assented, it becomes law.

If the President returns the bill (except a money bill), Parliament may reconsider it. If passed again, the President is constitutionally bound to give assent within the prescribed time, otherwise it becomes law automatically.

Bills are generally classified into four types: ordinary, money, finance, and constitutional amendment bills, covering general, financial, and constitutional matters.

Financial Functions

In financial procedure, the **annual budget** is the most important document, prepared by the executive but approved by the National Assembly under Articles 80–83, ensuring parliamentary

control over taxation and public spending. It also has the power to approve the **imposition, increase, or withdrawal of taxes**. Through these functions, the legislature controls public finances and ensures accountability and transparency in financial matters.

Legislative Role in the Appointment of Judges

In Pakistan, the legislature does not directly appoint judges but plays an indirect oversight role. Under the 1973 Constitution, judges are appointed on the recommendation of the Judicial Commission, and these nominations are reviewed by a Parliamentary Committee of Parliament members, which may confirm or reject them. This ensures transparency while maintaining judicial independence.

Electoral Functions

Under the 1973 Constitution of Pakistan, the legislature performs an **electoral function** in selecting key constitutional offices. The President is elected under constitutional provisions, while the Prime Minister is chosen through a majority vote in the National Assembly. The Senate is formed through indirect elections, and reserved seats are filled through proportional representation. These processes ensure democratic representation in the formation of constitutional institutions.

Amendment in the Constitution

The legislature has the power to **amend the Constitution under the Constitution of Pakistan 1973**. Constitutional amendments are introduced through a constitutional amendment bill. Through this function, the legislature can revise and update the constitutional framework to address changing political, social, and administrative needs while maintaining constitutional continuity. The Constitution of Pakistan is rigid in nature when it comes to amendments. This rigidity helps protect the Constitution from frequent or arbitrary changes.

Under **Articles 238 and 239 of the 1973 Constitution**, a constitutional amendment requires:

- Approval by a **two-thirds majority of the total membership** of both the National Assembly and the Senate.

- If the amendment affects the boundaries or rights of a province, it must also be approved by a **two-thirds majority of the concerned Provincial Assembly**.

Accountability and Oversight of the Executive

Parliamentary accountability means that the executive (Prime Minister, Cabinet, and ministers) is answerable to the legislature for its policies, decisions, administration, and use of public funds. In Pakistan, this accountability is ensured through various mechanisms. Members of Parliament can ask questions to ministers regarding government performance and public issues. Debates and motions allow discussion on national matters and criticism of government actions. Standing committees examine bills and review the performance of ministries in detail, while the Public Accounts Committee ensures financial accountability by auditing government expenditure. Parliament also controls public spending through the budget and demands for grants. Additionally, ministers remain politically responsible for their departments under the principle of ministerial responsibility. A **vote of no confidence** allows the National Assembly to remove the Prime Minister if he/she loses majority support. If passed by a simple majority of the total membership, the Prime Minister must resign and a new leader is elected. A key example is the April 2022 vote of no confidence, which removed Prime Minister Imran Khan and led to the election of Shehbaz Sharif as Prime Minister.

Structure of Provincial Legislature in Pakistan

At the provincial level in Pakistan, the legislature is unicameral and consists of a Provincial Assembly in each province. Members of the Provincial Assembly (MPAs) are directly elected for a five-year term, unless dissolved earlier. The Governor, appointed by the President on the advice of the Prime Minister, represents the Federation and gives assent to provincial bills. The Speaker and Deputy Speaker are elected from the Assembly to conduct proceedings. Provincial assemblies make laws on provincial subjects and oversee provincial governance, while the Chief Minister, elected by majority, heads the provincial executive. At the provincial level, the legislature performs the same law-making, financial, and oversight functions as the federal legislature within provincial subjects.

Table 17.2: Members of Provincial Assemblies in Pakistan

Province	Total Seats	Directly Elected Seats	Reserved Seats for Women	Reserved Seats for Non-Muslims
Punjab	371	297	66	8
Sindh	168	130	29	9
Khyber Pakhtunkhwa	145	115	26	4
Balochistan	65	51	11	3
The seat distribution shown above reflects the composition of Parliament under the Constitution of Pakistan as applicable in 2026.				

Functions of Provincial Assemblies

Provincial Assemblies in Pakistan make laws on provincial subjects and oversee provincial governments. These include areas such as education, health, agriculture, local government, police, public order, irrigation, transport, tourism, energy, minerals, and culture, ensuring effective governance and development at the provincial level.

Role of Opposition in Legislature

The opposition consists of political parties that do not hold a majority in the National Assembly and are led by the leader of the opposition. It strengthens democracy by holding the government accountable, questioning policies, highlighting public concerns, and participating in parliamentary debates and committees. Currently, the opposition is led by Omar Ayub Khan under PML(N) Govt. 4th term.

Significance of the Legislature in Pakistan

1. **Law-making authority:** The legislature is the primary body responsible for making, amending, and repealing laws in Pakistan, ensuring proper legal governance.
2. **Representation of people and provinces:** It reflects the will of citizens through the National Assembly and ensures provincial equality through the Senate.
3. **Financial control:** It approves the national budget, taxation, and public expenditure, keeping government spending under parliamentary supervision.
4. **Accountability and oversight:** The legislature monitors the executive through questions, debates, committees, and motions to ensure transparency and good governance.
5. **Strengthening democracy and federation:** It promotes democratic values, protects fundamental rights, and maintains balance between federal and provincial governments.

Conclusion

The legislature is a key organ of the state and a foundation of Pakistan's parliamentary democracy. Through its law-making, financial, electoral, and oversight functions, it represents the people and ensures government operates within constitutional limits. The bicameral Parliament (National Assembly and Senate) ensures both popular representation and federal balance. By making laws, approving budgets, checking the executive, and amending the Constitution, the legislature protects democracy, safeguards citizens' interests, and upholds the rule of law in Pakistan.



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Lecture 18

The Executive in Pakistan

Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Define the Executive (Meaning, types and significance) and explain its basic role in governance in general.
- Describe the structure of the Executive under the 1973 Constitution of Pakistan.
- Explain the roles and functions of key executive authorities, including the President, Prime Minister, and Federal Cabinet.
- Analyze the role of the civil bureaucracy in policy implementation and the functioning of federal and provincial administration in Pakistan.

Introduction

The previous lecture introduced the Legislature in Pakistan as one of the three key organs of the state under the 1973 Constitution. It covered the structure and functions of Parliament, including the National Assembly, Senate, President, and Prime Minister, as well as provincial legislatures. It also explained the legislative process, financial and constitutional roles, parliamentary accountability, and the role of the opposition, emphasizing Parliament's importance in democratic governance and federal representation.

This lecture examines the concept, structure, and significance of the Executive in Pakistan. It highlights the constitutional foundations of the executive and explains its functioning within Pakistan's parliamentary system. It also discusses the Bureaucracy which is the permanent administrative machinery of the state that assists the executive in implementing laws, policies, and government decisions.

Primary Source: Constitution of the Islamic Republic of Pakistan, 1973



Meaning and Significance of Executive

The term "executive" is derived from the Latin word *exsequi*, meaning "to carry out" or "to execute." In political science, the executive refers to the branch of government responsible for implementing laws passed by the legislature, administering public affairs, and managing the day-to-day functions of the state. In practical terms, it includes the President, Prime Minister, Federal Cabinet, and the civil bureaucracy that works at both federal and provincial levels.

In modern democratic systems, the executive plays a central role in policy making, governance, and public administration. It is responsible for maintaining law and order, conducting foreign relations, ensuring national security, and providing public services. The effectiveness of governance largely depends upon the efficiency and competence of the executive because it serves as the operational arm of the state, translating laws and policies into practical action. Therefore, the executive is indispensable for maintaining political stability, ensuring good governance, and achieving national development objectives.

Types of Executives

There are several types of executives, which can be classified as follows:

1. Nominal Executive and Real Executive

- Nominal Executive or Ceremonial head with constitutional powers but limited actual authority (e.g., the President of Pakistan).
- Real Executive exercises actual executive powers and makes policy decisions (e.g., the Prime Minister of Pakistan).

2. Single Executive and Plural Executive

- Single Executive authority is concentrated in one person (e.g., the President of the United States).
- Plural Executive power is shared by several individuals (e.g., the Switzerland Federal Council).

3. Parliamentary Executive and Presidential Executive

- Parliamentary Executive is drawn from and accountable to the legislature (e.g., Pakistan and the United Kingdom).
- Presidential Executive is separate from the legislature and elected independently (e.g., the United States).

4. Political Executive and Permanent Executive

- **Political Executive:** Elected political leaders who formulate policies (e.g., Prime Minister and Ministers).
- **Permanent Executive:** Civil servants or bureaucracy who implement policies and remain in office irrespective of changes in government.

The Executive in Pakistan under 1973 Constitution

Pakistan follows a parliamentary system, which is a form of representative democracy where the Executive in Pakistan derives its authority from the Constitution of the Islamic Republic of Pakistan, 1973. Articles 41–100 establish the federal executive, while Articles 129–140 provide for the provincial executive. These provisions create a parliamentary system in which the Prime Minister and Cabinet exercise real executive authority and are accountable to Parliament.

The executive does not function in isolation; it interacts closely with the legislature and judiciary:

- **With the Legislature:** The executive implements laws passed by Parliament. Ministers are often members of the National Assembly or Senate, linking the executive directly to the legislative process. The legislature monitors executive performance through question sessions, debates, and parliamentary committees.
- **With the Judiciary:** The judiciary ensures that executive actions comply with the Constitution. If the executive exceeds its authority or violates citizens' rights, the courts can nullify its actions (Articles 199 and 184).

This relationship prevents the concentration of power. While the executive runs the state, it cannot override laws or ignore judicial rulings. Similarly, Parliament cannot bypass the executive in administrative functions.

The executive in Pakistan consists of two parts:

1. Political Executive

The elected leadership responsible for policy-making.

Components:

- President
- Prime Minister
- Federal Cabinet
- Ministers of State
- Advisers and Special Assistants

2. Permanent Executive

The civil bureaucracy responsible for implementing government policies.

Components:

- Federal Secretaries
- Civil Servants
- Administrative Officers
- Government Departments



Structure of Federal Executive

The President of Pakistan

The President of Pakistan is a constitutional head of state and serves as a symbol of the federation's unity. Unlike the Prime Minister, the President's role is largely ceremonial under Pakistan's parliamentary system, though certain constitutional powers provide authority in specific circumstances in Pakistan. The 1973 Constitution defines the President's position, functions, and limitations to ensure balance between symbolic and executive authority.

President's Secretariat

The President's Secretariat is the administrative office located at Aiwan-e-Sadr in Islamabad, which assists the President in constitutional and ceremonial functions and coordinates with the Prime Minister's Secretariat and Central Secretariat on official matters.

Executive and Ceremonial Powers and Functions of the President

Executive Powers and Functions

- Appoints the Prime Minister (from the National Assembly majority party)
- Appoints Governors of provinces on advice of the Prime Minister
- Appoints key constitutional and high officials (on advice), including judges of superior courts
- Acts as the constitutional head for execution of federal laws
- Gives assent to bills passed by Parliament to become law
- Summons, prorogues, and may dissolve the National Assembly on advice
- Acts on the advice of the Prime Minister and Cabinet in most executive matters
- Ensures continuity of the constitutional and administrative system of the state

Ceremonial Powers and Functions

- Acts as the symbolic Head of State and represents national unity
- Represents Pakistan in international relations during state visits and receives foreign heads of state and dignitaries
- Accepts Letters of Credence from ambassadors and high commissioners, formally recognizing diplomatic representatives
- Awards civil and military decorations and national honours for distinguished services
- Presides over national functions, official ceremonies, and events of national importance
- Represents the continuity, dignity, and sovereignty of the Pakistani state

Emergency Powers

The President may proclaim an emergency, usually on the advice of the Prime Minister and the Federal Government, in the following situations:

- When Pakistan faces war or external threats.
- When the security or stability of the country is seriously threatened due to internal disturbance.
- Financial Emergency may be proclaimed when the financial stability or credit of Pakistan is threatened or endangered.

During an emergency, the Federal Government may exercise wider powers to restore security, maintain constitutional order, and protect national interests.

Prime Minister of Pakistan and Federal Cabinet

In Pakistan's parliamentary system, the Prime Minister (PM) is the chief executive of the country and the most powerful figure in the federal government. Constitutionally, the Prime Minister is the head of government, responsible for forming the federal executive. Unlike the President, who

is largely ceremonial, the Prime Minister holds real executive powers, guiding domestic and foreign policies, defense, and administrative decisions. The Federal Cabinet, composed of ministers, assists the PM in implementing policies, running government departments, and ensuring accountability to Parliament.

Prime Minister's Secretariat

It is the highest Executive office of the Federal Government, which supervises all other affairs of the Government. It is working under the direct control of PM, who is accountable to the Parliament for its working.

Powers and Responsibilities of the Prime Minister

The Prime Minister holds significant constitutional powers and responsibilities, including:

- Directs the federal government and its ministries as the Chief Executive of the Federation (Article 90).
- Oversees the implementation of laws and policies approved by Parliament.
- Coordinates federal and provincial programs to ensure effective governance.
- Appoints federal ministers and allocates portfolios; also appoints advisers and special assistants (Articles 91–92).
- Leads formulation and implementation of national policies in areas such as economy, security, and foreign affairs through the Cabinet system.
- Issues executive decisions and directives within constitutional limits.
- Represents the government of Pakistan in international meetings and diplomatic engagements
- Maintains coordination with Parliament, judiciary, and provincial governments for smooth governance.

Composition of Federal Cabinet

The Federal Cabinet is the collective decision-making body that assists the Prime Minister in governance. Its formation and composition are guided by the Constitution:

- Cabinet Ministers are usually selected from among the members of Parliament (National Assembly or Senate).
- Members are appointed by the President on the PM's advice (Article 91).
- The Cabinet consists of federal ministers, ministers of state, and advisors, each heading specific ministries.
- The PM can reshuffle the Cabinet, assign portfolios, and form committees to manage specialized tasks.

Executive Role of the Federal Cabinet

- Policy formulation: Drafts and approves new policies before submission to Parliament.
- Implementation: Supervises ministries to ensure laws and policies are executed efficiently.
- Coordination: Acts as a bridge between federal and provincial governments.
- Decision-making: Collective discussions ensure diverse viewpoints are considered in national governance.

The Cabinet operates under the PM's leadership, but collective consultation ensures broader ownership of decisions. For example, economic reforms or budget proposals are discussed in Cabinet meetings before being presented to Parliament, demonstrating shared responsibility and accountability.

Federal Minister

A Federal Minister is the political head of a Ministry in Pakistan. He or she formulates and supervises policies, oversees the administration of the ministry, and is collectively responsible to the National Assembly.

Minister for State

A Minister for State is the political head of a Division or a junior minister attached to a Ministry, assisting the Federal Minister in managing specific functions assigned by the Prime Minister and helping in policy implementation and parliamentary affairs.

Provincial Executive of Pakistan

Like the Federal Government, each of Pakistan's four provinces Punjab, Sindh, Khyber Pakhtunkhwa, and Balochistan has its own provincial executive. The organization and functions of provincial government are the same as the Federal Government. Articles 129–140A of the Constitution of Pakistan, 1973 deal with the Provincial Executive. They define the structure, powers, and functions of provincial governments that consists of the Governor, the Chief Minister, and the Provincial Cabinet.

Structure, Powers and Functions of Pakistan Provincial Executive

Governor (Provincial Executive)

The Governor is the constitutional head of the province and acts as the representative of the federation. He is appointed by the President of Pakistan on the advice of the Prime Minister. In a parliamentary system, the Governor performs mainly ceremonial and constitutional duties. These include giving assent to bills passed by the Provincial Assembly, summoning and proroguing the Assembly, and appointing the Chief Minister. In practice, the Governor acts on the advice of the Chief Minister and Provincial Cabinet in most matters.

Chief Minister (Provincial Executive)

The Chief Minister is the head of government and the chief executive authority of the province. He is elected by the Provincial Assembly and is responsible for running the provincial government. The Chief Minister leads the Provincial Cabinet, formulates and implements policies, oversees provincial administration, and ensures law and order. He exercises real

executive powers and remains in office as long as he enjoys the confidence of the Provincial Assembly.

Functions and Powers of Provincial Executive

- Implements laws passed by the Provincial Assembly
- Formulates and executes provincial policies
- Maintains law and order through provincial administration
- Manages key departments such as education, health, agriculture, and finance
- Prepares and implements provincial budget and development plans
- Coordinates with the federal government on shared subjects
- Oversees civil bureaucracy and provincial service delivery
- Ensures collective responsibility to the Provincial Assembly

Similar to the federal parliamentary system, the Governor serves as the nominal executive, whereas the Chief Minister and Provincial Cabinet exercise actual executive authority and are accountable to the Provincial Assembly.

Civil Bureaucracy: The Permanent Executive of Governance (Federal and Provincial)

The civil bureaucracy is the administrative backbone of the state, responsible for implementing government policies, maintaining public services, and supporting the executive in decision-making. In Pakistan, the bureaucracy works closely with the Prime Minister and Federal Cabinet to ensure the laws and policies passed by Parliament are executed efficiently. The structure, role, and challenges of civil bureaucracy are critical for understanding how governance functions at both federal and provincial levels.

Central (Federal) Secretariat

The Central or Federal Secretariat is the main administrative hub of the Government of Pakistan, located in Islamabad, where federal ministries and divisions operate under Federal Secretaries. It is responsible for policy formulation, coordination, and implementation of national policies

across all sectors of government through various ministries, attached departments, and regulatory bodies.

Provincial Secretariat (Pakistan)

The Provincial Secretariat is the main administrative headquarters of the provincial government responsible for policy formulation, coordination, and implementation of government decisions at the provincial level under the Chief Minister and Provincial Cabinet. It consists of various departments such as Education, Health, Finance, and Home, each headed by a Provincial Secretary who is a senior civil servant responsible for policy execution, administrative control, and coordination with attached departments and field offices to ensure effective governance. In Pakistan, Provincial Secretariats are located in four provinces: Punjab Secretariat in Lahore, Sindh Secretariat in Karachi, Khyber Pakhtunkhwa Secretariat in Peshawar, and Balochistan Secretariat in Quetta.

Bureaucratic Officials

Federal Secretary

At the federal level, the senior-most civil servant is the Cabinet Secretary of Pakistan (not Chief Secretary). Federal ministries/divisions are headed by Federal Secretaries.

Chief Secretary

The Chief Secretary is the senior-most civil servant and administrative head of a provincial government, responsible for coordinating all provincial departments and implementing government policies.

Secretary

A Secretary is the administrative head of a federal or provincial ministry/division, responsible for policy implementation and overall management of the department.

Additional Secretary

An Additional Secretary assists the Secretary and supervises major wings or sectors of a ministry or department.

Joint Secretary

A Joint Secretary heads a specific wing or subject area and assists in policy formulation and administrative coordination.

Deputy Secretary

A Deputy Secretary manages a particular branch or section and handles day-to-day administrative and policy matters under the supervision of senior officers.

Administrative Structure

Ministry

A Ministry is the highest administrative unit of the Federal Government responsible for formulating and implementing policies in a specific sector. Pakistan currently has more than 35 federal ministries, such as the Ministry of Finance, Ministry of Foreign Affairs, and Ministry of Interior. At the **provincial level**, ministries (commonly called departments) perform the same functions within the province under the Chief Minister and Provincial Cabinet. For example, Provincial Finance Department, Health Department, and Education Department carry out policy implementation in their respective sectors.

Division

A Division is an administrative unit within a federal ministry that deals with a specific area of government business and is headed by a Federal Secretary. Some ministries consist of one or more divisions. At the **provincial level**, the equivalent structure is generally organized as departments and sub-departments rather than formal divisions.

Attached Departments

Attached Departments assist ministries and divisions by performing specialized technical, regulatory, or executive functions and implementing government policies. At the **provincial level**, similar attached departments work under provincial ministries/departments to ensure policy execution at the operational level, such as police departments, health services, and education directorates.

Autonomous and Semi-Autonomous Bodies

These are organizations established by the government to perform specific functions with varying degrees of administrative and financial independence. At both **federal and provincial levels**, such bodies exist to improve efficiency and specialization in governance.

- Autonomous Bodies: Enjoy substantial operational independence (e.g., Higher Education Commission).
- Semi-autonomous Bodies: Operate under government supervision but have limited administrative autonomy (e.g., Pakistan Electronic Media Regulatory Authority).

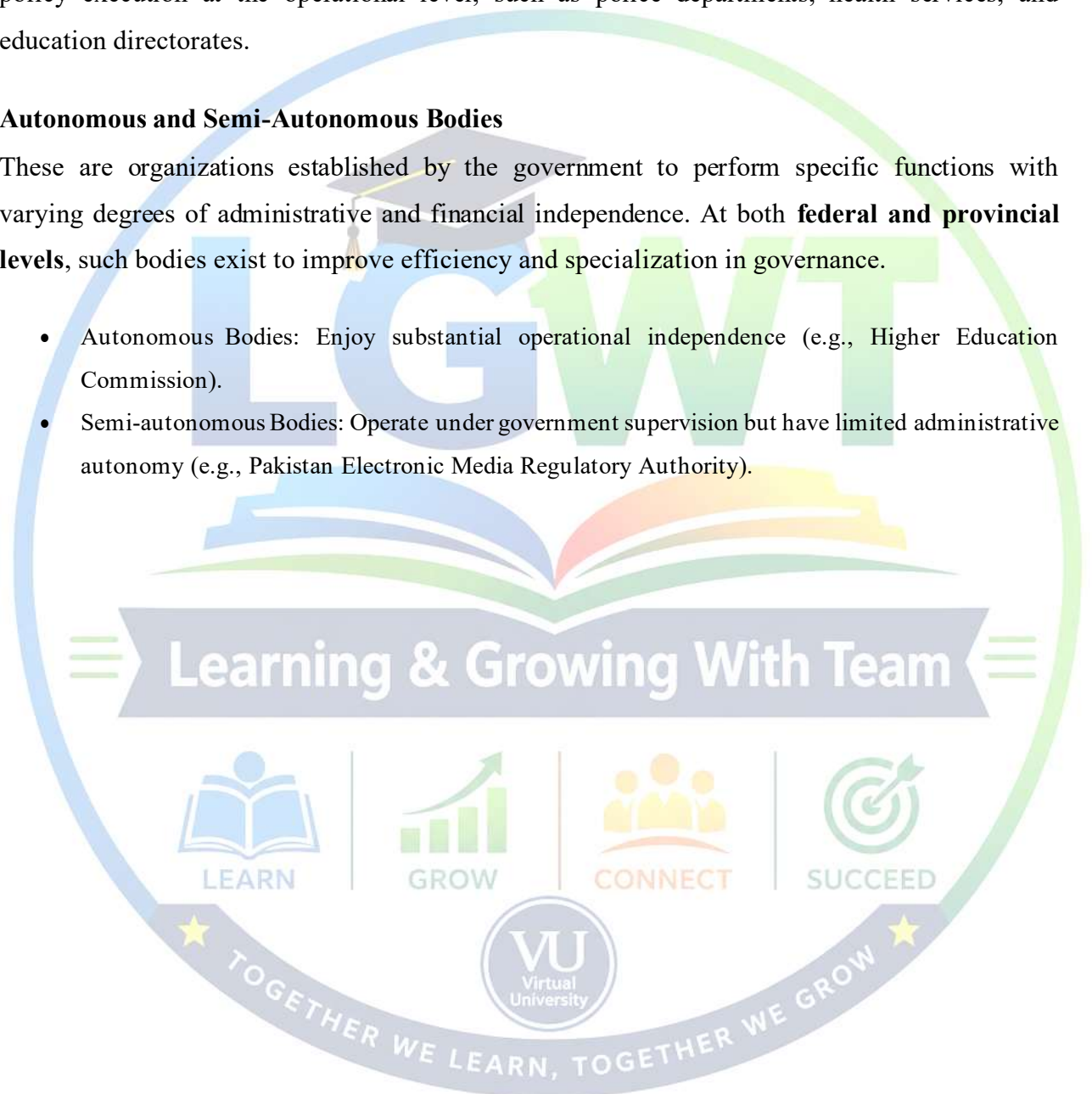
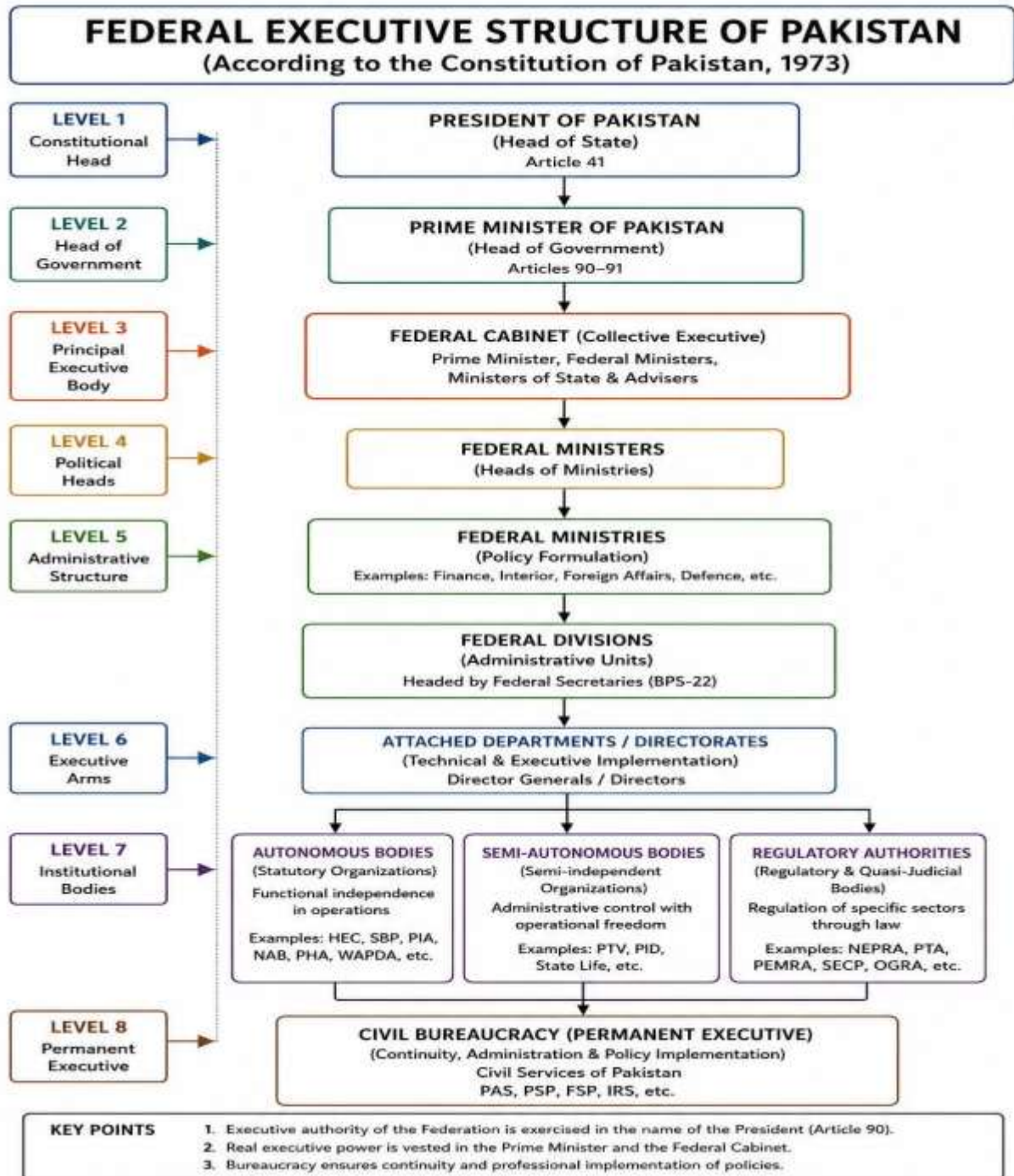


Chart: 18.1 Federal Executive Structure of Pakistan



Source: Compiled by the author (2026) using information from the Constitution of Pakistan, 1973.

Role of Bureaucracy in Policy Formulation and Implementation

The bureaucracy plays a dual role in governance: advising the executive and executing policies at federal and provincial level.

- Assists political leadership (Ministers/Chief Ministers) in preparing policies
- Provides technical advice, data, and expert recommendations
- Drafts policies, laws, and regulations at federal and provincial levels
- Coordinates between ministries/divisions and departments for policy approval
- Implements government policies through administrative machinery
- Ensures continuity of governance regardless of political changes
- Monitors and evaluates policy outcomes and reports progress
- Maintains coordination between federal and provincial governments for effective execution

The bureaucracy bridges the gap between political decisions and administrative action, maintaining stability and continuity in governance, regardless of political changes.

Challenges and Reforms in Pakistan's Executive Branch

Despite its crucial role, the civil bureaucracy faces several challenges:

- **Political Interference:** Frequent political changes affect appointments, transfers, and promotions, weakening administrative neutrality.
- **Inefficiency and Corruption:** Bureaucratic red tape, delays, and misuse of resources reduce policy effectiveness.
- **Rigid Structure:** Hierarchical rigidity limits innovation and responsiveness to emerging issues.
- **Capacity Gaps:** Inadequate training, technology, and resources hinder performance, especially in remote areas.

To address these challenges, several reforms have been suggested and implemented:

- Performance-based Evaluation: Officers are assessed on results rather than tenure alone.
- Digital Governance: Introduction of e-governance and automation reduces delays, increases transparency, and enhances citizen services.
- Civil Service Training: Continuous professional development programs enhance skills in policy analysis, administration, and leadership.
- Anti-corruption Measures: Strengthening institutions like the National Accountability Bureau (NAB) and internal audits improves accountability.

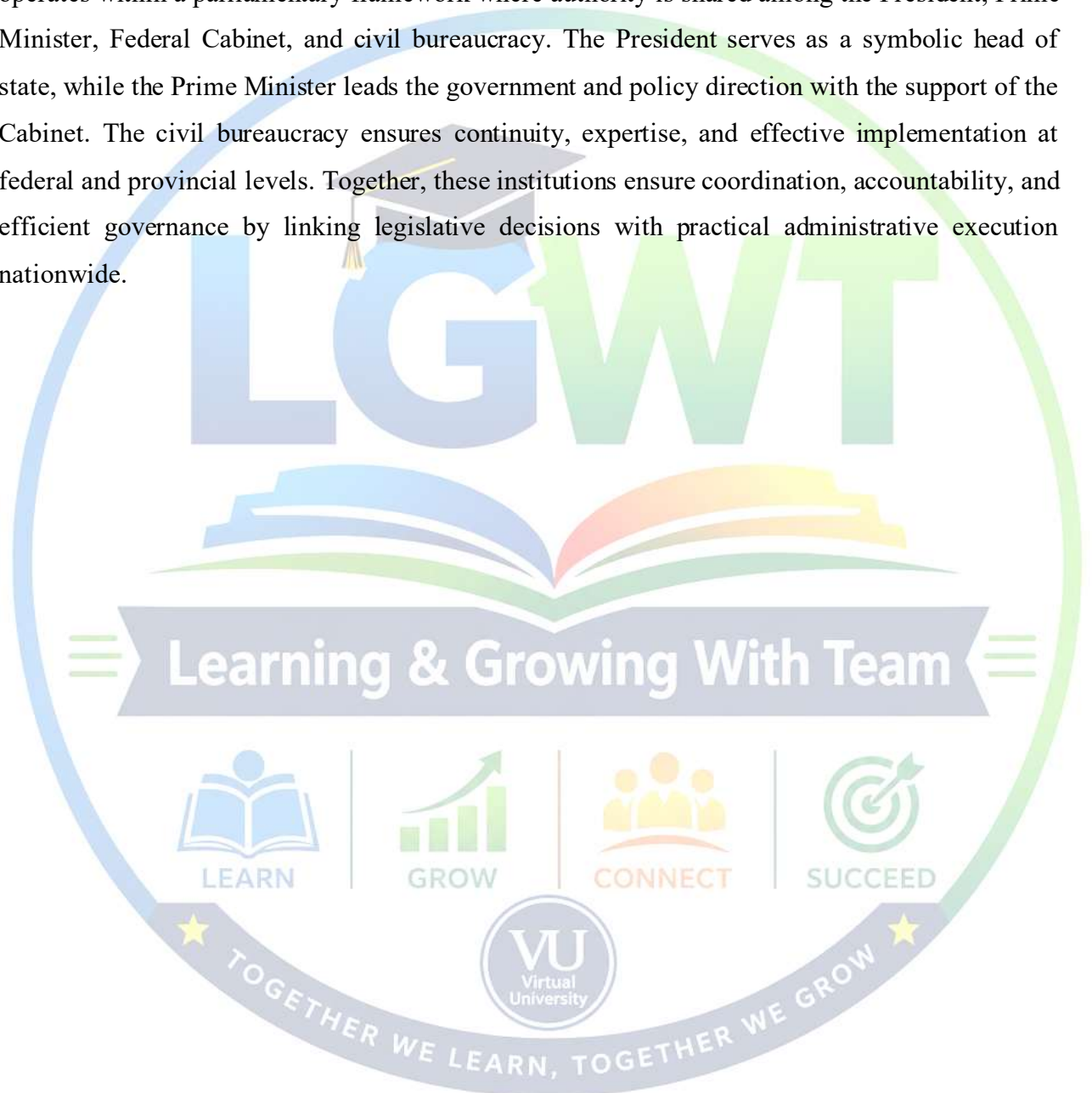
For example, e-governance initiatives in the Federal Board of Revenue and provincial tax departments have streamlined services, reduced human interference, and improved efficiency. Similarly, performance contracts for secretaries and ministers encourage goal-oriented administration.

Relationship of the Executive with the Legislature

In Pakistan's parliamentary system, the relationship between the executive and the legislature is characterized by interdependence and accountability. The Prime Minister and the Federal Cabinet are drawn from Parliament and remain collectively responsible to the National Assembly, which can remove the government through a vote of no confidence. At the same time, the executive plays a dominant role in the legislative process by initiating most bills, determining the parliamentary agenda, and influencing policy making through its parliamentary majority. This relationship reflects the principle of fusion of powers rather than strict separation of powers. Critically, while parliamentary control mechanisms such as question hour, debates, and committees are intended to ensure executive accountability, in practice a strong executive supported by a disciplined party majority often dominates the legislature, thereby limiting effective parliamentary oversight and weakening the system of checks and balances.

Conclusion

The Executive is the central pillar of governance in Pakistan, responsible for implementing laws, administering public affairs, and maintaining state stability under the 1973 Constitution. It operates within a parliamentary framework where authority is shared among the President, Prime Minister, Federal Cabinet, and civil bureaucracy. The President serves as a symbolic head of state, while the Prime Minister leads the government and policy direction with the support of the Cabinet. The civil bureaucracy ensures continuity, expertise, and effective implementation at federal and provincial levels. Together, these institutions ensure coordination, accountability, and efficient governance by linking legislative decisions with practical administrative execution nationwide.



Lecture 19

The Judiciary in Pakistan

Micro Learning Outcomes (MLOs)

At the end of this lecture, students will be able to:

- Define the judiciary and explain its significance in general and particularly in Pakistan's constitutional system.
- Describe the constitutional structure, powers and jurisdiction of the judicial system in Pakistan.
- Explain the functions of the judiciary, including the administration of justice, interpretation of laws, judicial review, and protection of fundamental rights.
- Evaluate the contemporary challenges facing Pakistan's judiciary

Introduction

In the previous lecture, the structure, types, and functions of the Executive in Pakistan were examined. The constitutional roles of the Prime Minister, President, and Cabinet, along with the implementation of laws and policies through ministries and departments, were discussed. The lecture explained the hierarchy, responsibilities, and constitutional position of the executive within Pakistan's system of government.

This lecture examines the concept of the judiciary, its constitutional role, judicial structure, and major functions in Pakistan. It explains the principle of the separation of the judiciary from the executive, the relationship between federalism and the judiciary, and their importance in ensuring judicial independence, constitutional supremacy, and the rule of law. The lecture also highlights contemporary challenges facing Pakistan's judicial system and recent developments under the Constitution of 1973.

Judiciary: Meaning and Concept

The Judiciary is one of the three principal pillars of the state, alongside the legislature and the executive. Its primary responsibility is to interpret and apply the law, resolve legal disputes, and ensure that justice is administered fairly and impartially. In a constitutional democracy like Pakistan, the judiciary acts as the guardian of the Constitution, ensuring that all individuals and state institutions act within the limits prescribed by law.

Role and Functions of Judiciary

1. Interpretation of Laws

The judiciary interprets the Constitution and statutory laws enacted by the legislature. When legal provisions are ambiguous or disputes arise regarding their meaning, the courts provide authoritative interpretations to ensure uniform application of the law.

2. Administration of Justice

The courts adjudicate civil, criminal, constitutional, and administrative cases by applying legal principles and evidence. Their objective is to provide fair, impartial, and timely justice while protecting the rights of all parties.

3. Guardian of Constitutional Supremacy

Under the Constitution of Pakistan, 1973, the Constitution is the supreme law of the land. The judiciary ensures that all laws, executive actions, and governmental decisions conform to constitutional provisions. If any law or action violates the Constitution, the courts may declare it unconstitutional through the power of judicial review.

4. Protection of Fundamental Rights

The judiciary safeguards the Fundamental Rights of the citizens of any state. Citizens may approach the superior courts when they believe their constitutional rights have been violated, and the courts can provide appropriate legal remedies.

5. Upholding the Rule of Law

The judiciary ensures that every person and every public authority is subject to the law. No individual, regardless of position or status, is above the Constitution. This principle promotes equality before the law, accountability, and good governance.

6. Resolution of Disputes

The judiciary settles disputes involving:

- Individuals (civil and criminal cases)
- Businesses and organizations
- Provincial and federal governments
- Constitutional institutions
- The state and its citizens

Importance of Judiciary as Organ

By resolving these disputes peacefully and according to law, the judiciary contributes to social order and political stability. The judiciary plays a vital role in maintaining justice, peace, and stability in both society and the state. It protects the Constitution, safeguards fundamental rights, ensures the rule of law, and resolves disputes fairly and impartially. By holding individuals and public authorities accountable to the law, the judiciary promotes public confidence in the legal system and strengthens democratic governance and constitutional order.

The Judicial System of Pakistan Under 1973 Constitution

The judiciary is the third important pillar of state that responsible for interpreting laws and proving justice to the citizens of Pakistan. The judiciary is the system of courts and judges established at federal and provincial level under the Constitution of Pakistan.

The Federal Judicial Structure of Pakistan

The judicial system of Pakistan is organized in a hierarchical structure under the Constitution of Pakistan, 1973. Each court has a defined jurisdiction and performs specific judicial functions. The system is broadly divided into Superior Judiciary, Subordinate Judiciary, and Specialized Courts and Tribunals. Hamid Khan (2009) describes the Pakistan judicial system as a multi-layered structure based on the Constitution of 1973 and various laws made by Parliament. The hierarchy of courts, from top to bottom, is as follows:

The Supreme Court of Pakistan (SCP)

Structure of SCP

The Supreme Court of Pakistan is the highest court in the country. It is established under Article 176 of the Constitution of Pakistan 1973. The permanent seat of the Supreme Court is in Islamabad and also holds sittings in Lahore, Karachi, Peshawar, and Quetta through its branch registries.

The Supreme Court is headed by the Chief Justice of Pakistan. Article 177 of the Constitution says that the Chief Justice is appointed by the President. The other judges of the Supreme Court are also appointed by the President after consultation with the Chief Justice. The 26th Constitutional Amendment (2024) introduced a Judicial Commission and Parliamentary Committee for the appointment of the Chief Justice, making the process more transparent.

Powers of SCP

The Supreme Court has original jurisdiction, which means it can directly hear certain cases. Under Article 184(3), any person can directly approach the Supreme Court for the enforcement of fundamental rights in matters of public importance. The Supreme Court also has appellate jurisdiction, meaning it hears appeals from the High Courts. Under recent constitutional reforms (2025), constitutional matters assigned to the **Federal Constitutional Court (FCCP)** are no longer exercised by the Supreme Court. The Supreme Court continues to function as Pakistan's apex court for appeals and other jurisdiction assigned by the Constitution.

- **Appellate Jurisdiction (Article 185):** Hears appeals from High Courts and other courts as provided by law.
- **Original Jurisdiction (Article 184):** Decides disputes between the Federation and Provinces and other matters assigned by the Constitution.
- **Advisory Jurisdiction (Article 186):** Gives legal opinions to the President on questions of public importance.
- **Power to Do Complete Justice (Article 187):** May issue any order necessary to ensure complete justice in cases before it.
- **Binding Decisions (Articles 189 & 190):** Its judgments are binding on all other courts, and all executive and judicial authorities are required to act in aid of the Supreme Court.

Federal Shariat Court (FSC)

Structure of FSC

The Federal Shariat Court is a unique court in Pakistan. It was established by President Zia-ul-Haq in 1980 through Article 203C of the Constitution. The main job of this court is to examine the laws of Pakistan and decide whether they are in line with the teachings of Islam as given in the Holy Quran and Sunnah.

Among its landmark rulings, in 2022 the FSC declared all legal provisions relating to interest as un-Islamic, ordering the government to completely abolish interest rates and implement an interest-free banking system within five years a ruling later challenged by the State Bank of Pakistan in the Supreme Court.

The Federal Shariat Court consists of eight judges, including the Chief Justice. Three of these judges must be Islamic scholars (Ulema).

Functions of FSC

- The Federal Shariat Court also has appellate jurisdiction over criminal cases involving Hudood offences (offences with fixed punishments in Islamic law).
- Appeals from the Federal Shariat Court go to the Shariat Appellate Bench of the Supreme Court.

Federal Constitutional Court of Pakistan (FCCP)

Structure of FCCP

The Federal Constitutional Court of Pakistan (FCCP) is a constitutionally established judicial institution mandated to strengthen constitutional governance and provide authoritative adjudication of constitutional matters in the Islamic Republic of Pakistan. The Court was established in November 2025 through the Twenty-Seventh Constitutional Amendment, under Articles 175F and 175L of the Constitution of Pakistan. This landmark reform represents a significant evolution in Pakistan's judicial framework by creating a specialized constitutional forum dedicated exclusively to the interpretation, enforcement, and preservation of constitutional provisions.

Pursuant to this amendment, the original constitutional jurisdiction was transferred from the Supreme Court of Pakistan to the Federal Constitutional Court, ensuring focused, efficient, and expert adjudication of constitutional questions, free from the burden of ordinary appellate litigation. The court holds exclusive jurisdiction over constitutional interpretation, federal-provincial disputes, and fundamental rights enforcement, with its rulings binding on all courts, including the Supreme Court.

The Federal Constitutional Court formally commenced its constitutional functions on 13 November 2025. On 14 November 2025, Justice Amin-ud-Din Khan took oath as the first Chief Justice of the Federal Constitutional Court of Pakistan at Aiwan-e-Sadr, Islamabad administered by the President of Pakistan. The oath-taking ceremony was attended by senior members of the judiciary and other distinguished dignitaries.

At its inception, six Judges were appointed to the Court, ensuring representation from all provinces of Pakistan. The initial bench comprised six judges, serving until the age of 68. The President appoints judges on the Prime Minister's advice, with subsequent Chief Justice nominations handled by a Special Parliamentary Committee. High Court judges require only five years of eligibility for appointment, reduced from the previous seven. Following are the first bench of judges;

1. Justice Syed Hasan Azhar Rizvi
2. Justice Aamir Farooq
3. Justice Ali Baqar Najafi
4. Justice Muhammad Karim Khan Agha
5. Justice Rozi Khan Barrech
6. Justice Syed Arshad Hussain Shah

Core Constitutional Functions of FCCP

The Federal Constitutional Court (FCCP) became operational on 12 January 2026. The principal functions of the Federal Constitutional Court include:

- Resolution of disputes between the Federation and the Provinces (Article 175E(1))
- Enforcement of Fundamental Rights (Article 175E(3))
- Adjudication and authoritative interpretation of constitutional questions (Article 175E(5))
- Preservation of constitutional supremacy and the federal balance

Now, the Federal Constitutional Court of Pakistan stands as a guardian of the Constitution, committed to upholding the rule of law, safeguarding constitutional values, and ensuring the dispensation of justice strictly in accordance with the Constitution and the law. The court's creation remains deeply controversial. Critics argue the executive controls judicial appointments without objective criteria, threatening judicial independence. Supporters, however, justify the restructuring as a necessary step to modernize the judiciary and address a backlog exceeding 56,000 pending cases at the Supreme Court level. (fccp.gov.pk,2026)

Structure and Hierarchy of the Provincial Judiciary

High Courts

Pakistan has five High Courts, one for each province and one for the Islamabad Capital Territory:

- Lahore High Court (Punjab)
- Sindh High Court (Sindh)
- Peshawar High Court (Khyber Pakhtunkhwa)
- Balochistan High Court (Balochistan)
- Islamabad High Court (Islamabad Capital Territory)

Established under Article 192 of the Constitution of Pakistan, 1973, each High Court is headed by a Chief Justice and consists of other judges appointed according to the constitutional procedure. The Chief Justice is responsible for the administrative supervision of the High Court, including the allocation of cases, constitution of benches, and overall management of the court. High Courts exercise original, appellate, constitutional, and supervisory jurisdiction within their territorial jurisdiction. Under Article 199, they may issue constitutional writs to enforce fundamental rights and ensure that public authorities act within the law.

District and Sessions Courts

At the district level, every district in Pakistan has a District and Sessions Court. This is a very important court because it is the first major court that most people deal with in their daily lives. A District Judge usually deals with civil matters. A Sessions Judge deals with serious criminal cases. In practice, the District and Sessions Judge is an important judicial officer in a district. Additional District and Sessions Judges also work under the district judicial system.

Sessions Courts have the power to try serious criminal cases, including murder and robbery cases. They also hear appeals from the lower civil and criminal courts. The District Courts are the backbone of the justice system in Pakistan because they handle the largest number of cases and serve the common people directly.

Civil Courts

Civil Courts are established under the Civil Courts Ordinance 1962. They handle civil matters, meaning disputes between private parties about property, contracts, money, and family matters. Civil Courts are of different levels, including the court of Senior Civil Judge and Civil Judge. The hierarchy within civil courts depends on the financial value of the case and the subject matter.

Magistrate Courts

Magistrate Courts handle criminal cases at the lower level. There are two types of magistrates in Pakistan: Judicial Magistrates and Executive Magistrates. Judicial Magistrates work under the High Court and handle criminal trials. Executive Magistrates work under the provincial government and deal with matters of public order and administration. After the 18th Amendment (2010), there has been a greater effort to separate the judicial and executive functions of magistrates. Magistrate Courts are the first point of contact for criminal matters for the common people.

Special Courts and Tribunals

Besides the regular courts, Pakistan also has many Special Courts and Tribunals. These courts are set up for specific types of cases. Some important examples are:

- Anti-Terrorism Courts (ATC): These courts deal with terrorism-related cases under the Anti-Terrorism Act 1997.
- Accountability Courts: These courts deal with corruption cases under the National Accountability Bureau (NAB) Ordinance.
- Labour Courts and Tribunals: These deal with disputes between workers and employers.
- Banking Courts: These deal with financial and banking disputes.
- Family Courts: These deal with marriage, divorce, and maintenance cases under the Family Courts Act 1964.

These special courts exist because regular courts are very busy and some types of cases need special expertise. Pakistan has created many new special courts and tribunals as the legal needs of the country have grown more complex.

Role and Functions of the Judiciary

1. Administration of Justice

The primary function of the judiciary is to administer justice by resolving civil, criminal, and constitutional disputes according to the law. Courts ensure fair and impartial decisions. Article 37(d) of the Constitution of Pakistan, 1973 emphasizes the provision of inexpensive and expeditious justice.

2. Interpretation of the Constitution and Laws

The judiciary interprets the Constitution and laws when their meaning is unclear or disputed. This ensures the uniform application of the law and protects constitutional supremacy. Under the constitutional framework up to 2026, the Federal Constitutional Court (FCCP) hears constitutional matters assigned to it, while the Supreme Court remains Pakistan's apex court.

3. Judicial Review

The judiciary reviews laws and executive actions to ensure they comply with the Constitution. If a law or action violates the Constitution, the Supreme Court and High Courts may declare it unconstitutional under Articles 184 and 199.

4. Protection of Fundamental Rights

The judiciary safeguards the Fundamental Rights guaranteed under Articles 8–28 of the Constitution. The superior courts provide remedies against violations of these rights and may exercise constitutional jurisdiction where appropriate.

5. Settlement of Federal–Provincial Disputes

The Supreme Court has original jurisdiction under Article 184(1) to resolve disputes between the Federation and Provinces. This helps maintain constitutional balance and strengthens Pakistan's federal system.

6. Constitutional Check on the Legislature and Executive

The judiciary ensures that the legislature and executive act within the limits of the Constitution. Through judicial review, the superior courts may invalidate unconstitutional laws or executive actions, thereby upholding the rule of law, separation of powers, and constitutional governance.

Contemporary Challenges Facing the Judiciary in Pakistan

Despite constitutional safeguards, Pakistan's judiciary faces several important challenges:

- 1. Delay in Disposal of Cases:** Many civil and criminal cases take years to be decided because of lengthy legal procedures and limited judicial resources.
- 2. Large Case Backlog:** A high number of pending cases in the Supreme Court, High Courts, and subordinate courts affects the timely delivery of justice.
- 3. Need for Judicial Reforms:** Continuous reforms are needed to improve court efficiency, simplify procedures, and expand access to justice.
- 4. Digitalization of Courts:** The introduction of e-filing, virtual hearings, and digital case management has improved court administration, but implementation remains uneven across the country.
- 5. Maintaining Judicial Independence:** The judiciary must remain free from political and external influence and judges perform their duties without political pressure, external influence, or personal bias. An independent judiciary ensures fair trials, protects fundamental rights, and upholds the Constitution and the rule of law.

The Al-Jehad Trust Case (1996) is a landmark case that strengthened judicial independence in Pakistan. The Supreme Court ruled that the appointment of judges should be based on merit and made through meaningful consultation with the Chief Justice, rather than solely at the discretion of the executive. The judgment reinforced the independence of the judiciary and the principle of separation of powers.

6. Political Interference and Institutional Clashes: At times, tensions have arisen between the judiciary, legislature, and executive over constitutional powers and judicial decisions. A notable example is the Lawyers' Movement (2007–2009), which advocated for the restoration of judicial independence and reinforced the principles of separation of powers, constitutional governance, and the rule of law.

7. Implementation of Constitutional Reforms

Recent judicial reforms require effective implementation to strengthen the rule of law and improve public confidence in the judicial system.

Key Takeaways

- The judiciary is an independent organ of the state established under the **Constitution of Pakistan, 1973**.
- Pakistan's judicial system comprises the **Supreme Court, Federal Constitutional Court (where applicable under the amended constitutional framework), Federal Shariat Court, High Courts, subordinate courts, and specialized courts and tribunals**.
- The judiciary exercises **original, appellate, advisory, constitutional, and judicial review** jurisdiction.
- Judicial appointments to the superior judiciary are governed by **Article 175A** and related constitutional provisions.
- The judiciary plays a central role in protecting **constitutional supremacy, fundamental rights, and the rule of law**.
- Constitutional reforms, particularly the **Eighteenth Amendment (2010), Twenty-Sixth Amendment (2024)**, and subsequent constitutional developments up to **2026**, have continued to shape Pakistan's judicial system and its institutional framework.

Lecture 20

Federalism and the Distribution of Powers

Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Define the concept and key features of federalism and differentiate between federal and unitary systems using relevant examples.
- Explain the evolution of federalism in Pakistan, including the reasons for its adoption
- Analyze the constitutional basis of the distribution of powers in Pakistan by examining how authority is divided between the federation and provinces.
- Evaluate the contemporary challenges of federalism in Pakistan

Introduction

In the previous lecture, we examined the judicial system of Pakistan, its constitutional position, and its role in upholding the rule of law. We discussed the structure and jurisdiction of the Supreme Court, High Courts, and subordinate courts, along with their key functions. We also explored the judiciary's role in judicial review, the protection of fundamental rights, and the maintenance of constitutional supremacy.

In this lecture, we will examine the concept of federalism and the constitutional distribution of powers in Pakistan. We will discuss the federal structure established under the 1973 Constitution, the division of legislative, administrative, and financial powers between the federation and the provinces, and the role of key institutions in maintaining cooperative federalism. Finally, we will explore the challenges and significance of federalism in promoting national unity, provincial autonomy, and effective governance.

Federalism: Concept and Definition

In general terms, federalism means any kind of association of autonomous units. Federalism is a system of government in which powers are divided by the constitution between one central (federal) government and several regional (provincial) governments.

Roger Hillman explains federalism as: Federalism is a system of government in which the powers and functions of governments are divided by a constitution between the central government and sub-units.

K.C. Wheare defines federalism as: the method of dividing powers so that the general and regional governments are, each, within a sphere, coordinate and independent. (Nazir, 2008)

Shared sovereignty lies at the heart of the idea. Sovereignty means supreme authority, and in a federation, it is split the Centre is supreme in some matters, such as defence and currency, while the provinces are supreme in others closer to daily life. Federalism is often summed up in the phrase “unity in diversity”, because it joins different communities into one nation while still allowing each region to keep its own identity. In short, federalism means self-rule plus shared rule: provinces govern themselves in their own subjects and join in governing the whole country through common institutions.

Key Characteristics of a Federal System

- **Written Constitution:** A federal system is based on a written constitution that clearly defines and distributes powers between the federal and provincial or state governments.
- **Constitutional Supremacy:** The constitution is the supreme law of the land, and all governments and institutions must act in accordance with its provisions.
- **Division of Powers:** Legislative, administrative, and financial powers are constitutionally allocated between the federal and provincial governments to ensure shared governance.
- **Independent Judiciary:** An independent judiciary interprets the constitution and resolves disputes between the federation and the provinces.

- **Bicameral Legislature:** Most federations have a bicameral legislature consisting of a lower house representing the population and an upper house representing the federating units.
- **Provincial/State Representation:** Federating units are constitutionally represented in national decision-making, usually through the upper house, ensuring that the interests of all regions are protected.
- **Provincial/State Representation:** Federating units are constitutionally represented in national decision-making, usually through the upper house, ensuring that the interests of all regions are protected.

Theoretical Foundations of Federalism

1. Principle of Subsidiarity (Johannes Althusius)

Johannes Althusius proposed the principle of subsidiarity, which states that public affairs should be managed by the lowest level of government capable of addressing them effectively. Higher levels should intervene only when lower levels cannot perform the task efficiently. This strengthens local governance, promotes citizen participation, and keeps decision-making close to the people.

2. Decentralization Theory (Wallace E. Oates)

According to Wallace E. Oates, public services are delivered more efficiently when decisions are made by the lowest effective level of government, as local authorities better understand citizens' needs. However, functions requiring national coordination such as defence, foreign affairs, and macroeconomic policy should remain with the federal government. In Pakistan, this theory supports greater provincial and local autonomy in areas such as education, health, and local development.

3. Cooperative Federalism

The concept of cooperative federalism emphasizes that federal and provincial governments should share responsibilities and work together rather than operate independently. Effective federalism requires continuous intergovernmental coordination through constitutional institutions, such as the Council of Common Interests (CCI), to address shared issues like water, energy, and natural resource management.

Federal and Unitary Systems (Systems of Government)

Countries organize the distribution of governmental powers primarily through two constitutional systems: the federal system and the unitary system. Some political scientists also recognize the confederal system, although it is uncommon in the modern world.

A unitary system concentrates constitutional authority in the central government, while local or provincial (regional) governments exercise only those powers delegated by the centre, which may modify or withdraw them according to law. It promotes administrative efficiency and policy uniformity but may limit provincial autonomy and local participation. Examples include France, Japan, China, and Saudi Arabia.

A federal system is one in which the Constitution divides powers between the federal (central) government and the provincial or state governments. Each level derives its authority directly from the Constitution and exercises its powers within its constitutional jurisdiction. Federalism promotes provincial autonomy, democratic participation, and the accommodation of cultural and regional diversity, but it may also increase administrative costs, create policy differences, and require continuous coordination between governments. Examples include the United States, Canada, Australia, India, and Pakistan.

A confederal system is an association of sovereign states that voluntarily delegate limited powers to a common central authority while retaining their independence. It preserves the sovereignty of member states and promotes cooperation; however, the central authority has limited powers, making decision-making slower and coordination during national crises more difficult. A modern example often discussed as having confederal characteristics is the European Union. The member states of the EU remain sovereign countries but cooperate on areas such as trade, legislation, and

economic policy through common institutions. However, the EU is not a true confederation in the classical sense; it is a unique political and economic union.

Choosing a System of Government

Countries adopt federal or unitary systems according to their history, geographical size, cultural diversity, and administrative needs. Federalism is generally preferred by large and diverse countries because it constitutionally shares powers between the central and provincial governments, whereas a unitary system is often adopted to promote centralized decision-making, administrative efficiency, and policy uniformity.

Table 20.1: Comparison of Federal and Unitary Systems

Basis	Federal System	Unitary System
Constitutional Authority	The Constitution divides powers between the federal and provincial/state governments.	The Constitution vests supreme authority in the central government, which may delegate powers to local governments.
Provincial Authority	Provincial/state governments exercise constitutionally guaranteed powers that cannot be withdrawn unilaterally by the federal government.	Local or regional/provincial governments exercise powers delegated by the central government, which may modify or withdraw them.
Best Suited For	Large, geographically extensive, or culturally diverse countries.	Relatively small or more homogeneous countries, or states preferring centralized administration.
Examples	United States, Canada, Australia, Germany, India, Pakistan	United Kingdom, France, Japan, China
Source: Compiled by Author using different sources		

Federalism in Pakistan

Rationale for Adopting Federalism as System

Pakistan adopted federalism because its geographical, linguistic, cultural, and ethnic diversity made a unitary system unsuitable. The country comprises diverse regions with distinct identities and unevenly distributed resources such as agriculture, ports, minerals, hydropower, and natural

gas. Federalism provided a constitutional framework to preserve national unity while ensuring provincial participation in governance.

Following independence in 1947, one of the major constitutional issues was the distribution of powers between the federation and the provinces. These debates delayed the adoption of the first Constitution until 1956, as the provinces demanded greater autonomy while the federal government sought sufficient authority to maintain national cohesion. This balance between central authority and provincial autonomy has remained a defining feature of Pakistan's constitutional development.

In 1955, the One-Unit Scheme merged the provinces of West Pakistan into a single administrative unit to create parity with East Pakistan and simplify governance. However, the scheme concentrated power at the centre and was widely criticized for undermining provincial identities, particularly in Sindh and Balochistan. Owing to strong public opposition, it was abolished in 1970, and the original provinces were restored.

The separation of East Pakistan in 1971 highlighted the importance of political inclusion, provincial autonomy, and equitable power-sharing within a federation. These lessons strongly influenced the federal structure established under the 1973 Constitution.

The constitutional foundation of Pakistan's federal system is laid down in Article 1 of the 1973 Constitution, which declares Pakistan a Federal Republic. The federation consists of Punjab, Sindh, Khyber Pakhtunkhwa, and Balochistan, while the Islamabad Capital Territory is administered by the federal government. Azad Jammu and Kashmir and Gilgit-Baltistan have separate administrative arrangements, whereas the former FATA and PATA (Article 246) were historical tribal areas that were later integrated into Khyber Pakhtunkhwa.

An essential feature of Pakistan's federal structure is the Senate, established under Article 50 of the Constitution. As the upper house of Parliament, it provides equal representation to all four provinces, regardless of population size. This ensures that smaller provinces, such as Balochistan, have the same representation as larger provinces like Punjab, thereby protecting provincial interests and balancing the population-based representation of the National Assembly. The Senate thus serves as a key institution for safeguarding the federal principle in Pakistan.

Constitutional Distribution of Powers

Basis of Distribution of Powers

The 1973 Constitution establishes a federal system by constitutionally dividing legislative powers between the federation and the provinces. This distribution aims to balance national unity with provincial autonomy while ensuring that each level of government performs functions within its constitutional jurisdiction. The distribution of powers is the way the constitution assigns subjects to each tier of government. It serves four purposes. It prevents the concentration of authority in one place, which protects against misuse of power. It improves administrative efficiency by placing each task at the right level. It widens democratic participation, because more decisions are taken close to the people. And it improves policy responsiveness, letting regions shape policy to their own conditions. In Pakistan this distribution is set out in Articles 141 to 144 and detailed in the Fourth Schedule, which lists the subjects and gives rules for settling any conflict between federal and provincial law.

Some subjects are assigned exclusively to the federation because they require national uniformity, including defence, foreign affairs, currency, citizenship, communications, and international trade. In contrast, provinces legislate on matters affecting provincial needs, such as health, education, agriculture, local government, culture, and social welfare, enabling policies to reflect local priorities and conditions. The 18th Amendment (2010) significantly strengthened federalism in Pakistan by abolishing the Concurrent Legislative List and transferring most of its subjects to the provinces. This expanded provincial legislative and administrative authority, enhanced provincial autonomy, and shifted the balance of power from the federal government to the provinces.

Federal Legislative List

The Federal Legislative List (FLL), provided in the Fourth Schedule of the Constitution, contains subjects of national importance on which only Parliament may legislate. These include defence, foreign affairs, currency, citizenship, railways, telecommunications, and international trade, ensuring uniform national policies.

Provincial Legislative Authority

Provincial Assemblies have the authority to legislate on matters assigned to the provinces, including health, education, agriculture, local government, culture, and provincial law and order. This enables provinces to formulate policies according to their regional needs and priorities.

Abolition of the Concurrent Legislative List

The Eighteenth Amendment (2010) abolished the Concurrent Legislative List, transferring most of its subjects to the provinces. This reform significantly strengthened provincial autonomy by expanding provincial legislative and administrative powers.

Residuary Powers and Provincial Autonomy

Under the Constitution, residuary powers subjects not included in the Federal Legislative List belong to the provinces. This principle reinforces provincial autonomy and allows provinces to legislate on matters not expressly assigned to the federation.

Role of Parliament and Provincial Assemblies

Parliament legislates on subjects contained in the Federal Legislative List, while Provincial Assemblies make laws on provincial and residuary matters. Together, they ensure that legislative authority is exercised according to the constitutional distribution of powers, maintaining the federal balance.

Cooperative federalism requires the federal and provincial governments to work together on matters of shared interest. It promotes coordination in areas such as water, energy, and natural resources, supports joint decision-making, and provides institutional mechanisms to resolve disputes, ensuring effective and harmonious governance.

Institutions Supporting Federalism

Council of Common Interests (CCI)

The Council of Common Interests (CCI) is the main forum of cooperation. Its constitutional basis is Articles 153–154. In composition it is made up of the Prime Minister as chairman, the four Chief Ministers, and three federal members, so the provinces have a guaranteed seat at the table. Its

functions cover water resources, energy policy, the use of natural resources, and inter-provincial coordination. Its significance for federal stability is high, because by letting provinces influence national policy and settle disputes peacefully, it turns possible confrontation into negotiation.

National Finance Commission (NFC)

Fiscal federalism refers to the distribution of financial resources between the federal and provincial governments, ensuring that each level has adequate funds to perform its constitutional responsibilities. In Pakistan, this system is governed by the National Finance Commission (NFC) under Article 160 of the Constitution, which recommends the distribution of federally collected revenues between the federation and the provinces.

The 7th NFC Award, implemented in 2010, expanded the resource distribution formula beyond population to include poverty, revenue generation, and area, while increasing the provincial share of federal revenues. Although the Constitution envisages a new NFC Award every five years, no consensus has yet been reached on a successor, so the 7th NFC Award continues to govern revenue distribution. The NFC remains central to fiscal federalism by supporting provincial finances and promoting balanced national development.

Senate as the House of Federation

The Senate, established under Article 50, represents the federating units equally. Regardless of population, each province has the same representation, protecting provincial interests and balancing the population-based representation of the National Assembly.

Other Coordination Mechanisms

In addition to the CCI and NFC, institutions such as the **National Economic Council (NEC)** and regular federal–provincial meetings facilitate consultation on development planning, economic policy, and matters requiring intergovernmental cooperation.

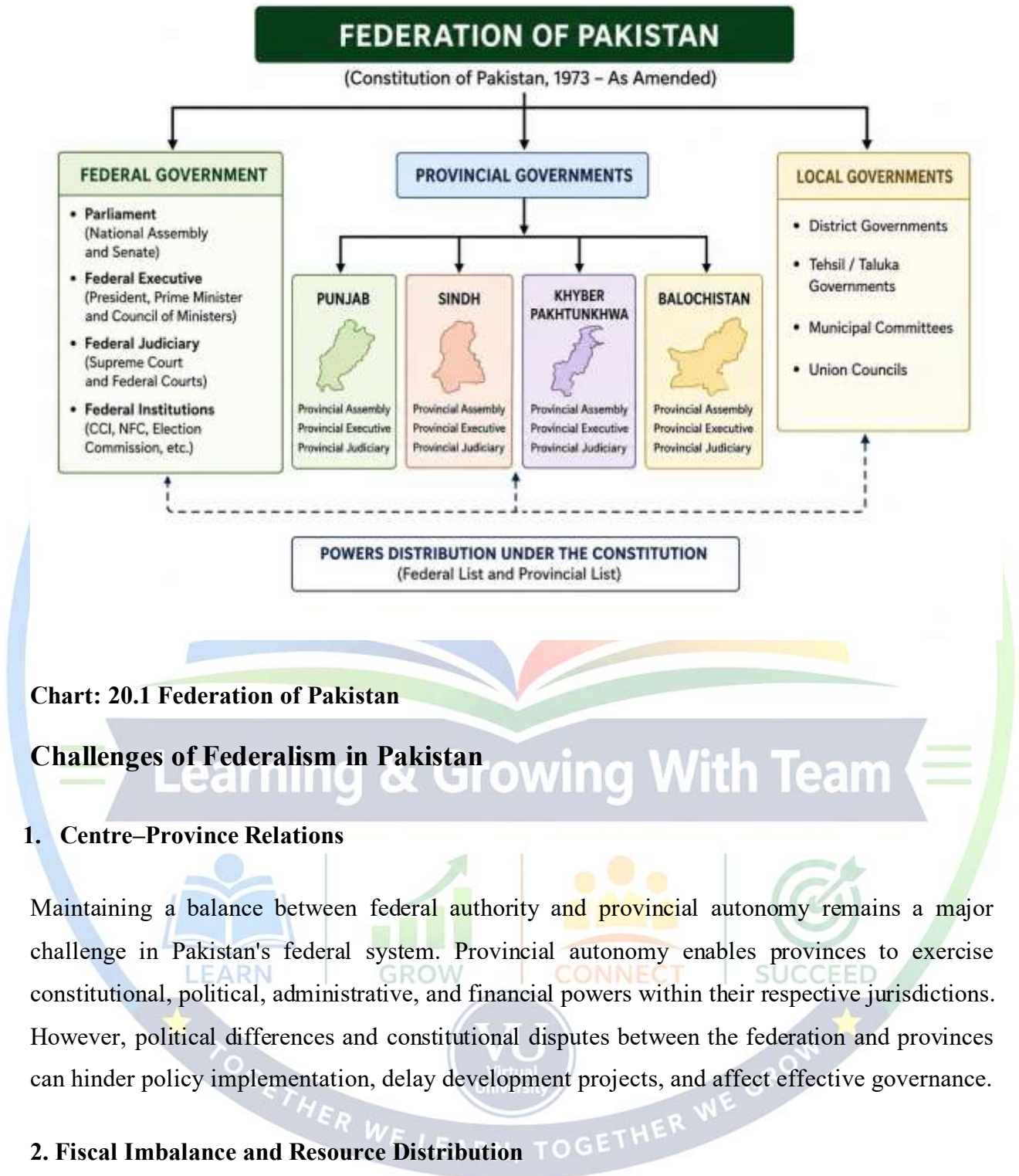


Chart: 20.1 Federation of Pakistan

Challenges of Federalism in Pakistan

1. Centre–Province Relations

Maintaining a balance between federal authority and provincial autonomy remains a major challenge in Pakistan's federal system. Provincial autonomy enables provinces to exercise constitutional, political, administrative, and financial powers within their respective jurisdictions. However, political differences and constitutional disputes between the federation and provinces can hinder policy implementation, delay development projects, and affect effective governance.

2. Fiscal Imbalance and Resource Distribution

Although provinces are responsible for major sectors such as health, education, and development, they have limited revenue-generating capacity and rely significantly on transfers through the National Finance Commission (NFC) Award. Strengthening provincial fiscal capacity remains

essential for meaningful autonomy, while persistent concerns over fiscal equity and resource distribution may contribute to provincial grievances, particularly in Balochistan, where issues of development and resource sharing have remained significant.

3. Water and Natural Resource Disputes

The unequal distribution of water, natural gas, minerals, and hydropower has led to inter-provincial disputes over resource allocation and ownership. The Kalabagh Dam controversy illustrates the challenges of balancing provincial concerns with national development priorities.

4. Capacity Differences Among Provinces

The provinces differ in administrative capacity, institutional strength, and financial resources. These disparities affect the quality of public service delivery and contribute to uneven socio-economic development across the country.

5. Weak Local Government System

Despite Article 140-A of the Constitution requiring elected local governments, implementation has often been inconsistent. Limited devolution of powers to local governments weakens grassroots democracy, public participation, and local accountability.

6. Political and Administrative Coordination

Federalism requires continuous coordination between the federation and the provinces in areas of shared responsibility. Weak institutional coordination, overlapping functions, and political disagreements can result in policy inconsistency and administrative inefficiency. The differing approaches adopted by the federal and provincial governments during the COVID-19 pandemic highlighted the importance of cooperative federalism and effective intergovernmental coordination.

Future of Federalism in Pakistan

The future of federalism lies in completing and strengthening this framework by deepening provincial autonomy through effective implementation of the 18th Amendment, ensuring a fair and sustainable fiscal system, and devolving power to the local level in line with Article 140-A. Alongside this, improved provincial revenue generation, stronger intergovernmental coordination, and equitable resource distribution are essential to reduce dependency, resolve disputes, and address provincial disparities. Ultimately, Pakistan's federal success depends on transforming constitutional arrangements into practical, cooperative governance that fulfills both the principles of self-rule and shared rule at every tier of the state.

Conclusion

Federalism is the constitutional framework that enables Pakistan to preserve national unity while accommodating its regional, linguistic, and cultural diversity. By distributing powers between the federation and the provinces, it promotes democratic participation, accountable governance, and effective public service delivery. The 1973 Constitution, further strengthened by the 18th Constitutional Amendment, has expanded provincial autonomy by transferring significant legislative and administrative powers to the provinces. Despite these reforms, challenges such as fiscal dependence, resource-sharing disputes, uneven institutional capacity, and weak local governance continue to affect the effective functioning of the federal system. Institutions including the Senate, the Council of Common Interests (CCI), and the National Finance Commission (NFC) play a crucial role in promoting intergovernmental coordination and resolving federal–provincial issues. The continued success of Pakistan's federal system depends on strengthening institutions, ensuring equitable resource distribution, and fostering cooperative governance to achieve democratic stability, national integration, and sustainable development.

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Lecture 21

Fundamental Rights in Pakistan

Micro Learning Outcomes (MLOs)

At the end of this lecture, students will be able to:

- Define human rights and fundamental rights and state their basic features.
- Explain Articles 8–28 of the Constitution of Pakistan with examples.
- Analyze enforcement and emergency provisions regarding fundamental rights in the Constitution of Pakistan.

Introduction

In the previous lecture, we discussed the federal structure of Pakistan, the distribution of powers between the federation and the provinces, and the impact of the 18th Constitutional Amendment on provincial autonomy. In the present lecture, we will discuss the concept of human rights, their significance in modern societies, and the fundamental principles that ensure the dignity, equality, and freedom of all individuals.

Human rights are among the most important principles of modern civilization. They are the basic rights and freedoms that belong to every person regardless of nationality, race, religion, gender, language, or social status. These rights are based on the inherent dignity and equality of all human beings and aim to ensure freedom, justice, and peace in society. Over time, the protection of human rights has become a central concern of nations and international organizations, particularly after the adoption of the Universal Declaration of Human Rights (UDHR) by the United Nations in 1948.

Pakistan, as a democratic state, has incorporated a comprehensive set of fundamental rights in the Constitution of 1973. These rights reflect both universal human rights principles and the Islamic values of justice, equality, and respect for human dignity. Articles 8 to 28 of the Constitution of 1973 provide important safeguards for the protection of citizens' rights and freedoms, while the judiciary and other institutions play a vital role in their enforcement. This lecture explores the concept of human rights, examines scholarly perspectives, highlights the importance of fundamental rights, and analyses the constitutional provisions and mechanisms

established in Pakistan for their protection and enforcement, including the circumstances under which certain rights may be suspended during a state of emergency.

Definitions of Human Rights

Harold J. Laski

According to Harold Laski: “Rights are those conditions of social life without which no man can seek, in general, to be himself at his best.” This definition emphasizes that rights are necessary for the development of an individual's personality and potential.

Jacques Maritain

Maritain viewed human rights as rights that arise from human dignity and moral values. He believed that every person deserves respect simply because they are human.

Importance of Fundamental Rights

Fundamental rights are the cornerstone of a democratic and constitutional state. They are the basic rights and freedoms guaranteed by the Constitution to protect individuals from arbitrary actions of the state and to ensure the full development of human personality. These rights are derived from the broader concept of human rights and are considered essential for maintaining justice, liberty, equality, and the rule of law in society. Without fundamental rights, democratic institutions cannot function effectively, and citizens cannot enjoy a secure and dignified life.

The importance of fundamental rights can be understood through the following dimensions:

- **Preservation of Human Dignity**

The primary purpose of fundamental rights is to protect the inherent dignity of every individual. Human dignity refers to the intrinsic worth and value possessed by every person. Fundamental rights safeguard individuals against degrading treatment, discrimination, exploitation, and arbitrary interference in their personal lives. By recognizing the dignity of all citizens, these rights establish the moral foundation of a just society.

- **Protection of Individual Liberty**

Liberty is one of the most cherished values in any democratic society. Fundamental rights protect personal freedom by ensuring that individuals can think, speak, move, and act freely within the limits prescribed by law. Rights such as freedom of speech, freedom of movement,

and freedom of religion enable citizens to make independent choices and participate actively in social and political life. Without these freedoms, individuals would be vulnerable to oppression and authoritarian control.

- **Establishment of Equality and Non-Discrimination**

Fundamental rights promote equality by ensuring that all citizens are treated equally before the law. They prohibit discrimination based on race, religion, ethnicity, gender, language, or social status. Equality is essential for creating a society where opportunities are distributed fairly and every individual can contribute to national development. The principle of equality also strengthens social cohesion by reducing divisions and prejudices among different groups.

- **Limitation of State Power**

A constitutional government derives its authority from the law, but unchecked power can lead to abuse and tyranny. Fundamental rights serve as constitutional restraints on governmental authority by defining limits beyond which the state cannot interfere in the lives of citizens. They prevent arbitrary arrests, unlawful detention, censorship, and other forms of governmental excess. In this way, fundamental rights act as a shield against the misuse of power.

- **Strengthening Democratic Governance**

Democracy is not merely a system of elections; it is a system that requires the active participation of informed and empowered citizens. Fundamental rights such as freedom of expression, freedom of association, and freedom of assembly enable citizens to voice their opinions, organize political activities, and hold public officials accountable. These rights foster political awareness and strengthen democratic institutions by ensuring that governments remain responsive to the people.

- **Promotion of Rule of Law and Justice**

Fundamental rights are closely linked with the concept of the rule of law, which requires that all individuals and institutions, including the government, are subject to the law. These rights ensure that citizens have access to fair legal procedures and protection against arbitrary actions. Through judicial remedies and constitutional safeguards, individuals can seek justice when their rights are violated. Consequently, fundamental rights enhance public confidence in the legal system and promote a culture of accountability.

- **Facilitation of Human Development**

The development of a nation depends on the development of its people. Fundamental rights create an environment in which individuals can pursue education, employment, creativity, and personal growth. Rights related to education, freedom of thought, and access to information contribute to intellectual development, while economic freedoms encourage innovation and productivity. Thus, fundamental rights are essential for both individual advancement and national progress.

- **Protection of Minority Communities**

In pluralistic societies, minority groups often face the risk of marginalization and discrimination. Fundamental rights provide constitutional protection to religious, linguistic, ethnic, and cultural minorities by guaranteeing equal treatment and preserving their identities. These protections help maintain social harmony and ensure that diversity becomes a source of strength rather than conflict. Respect for minority rights is also a key indicator of a mature and democratic society.

- **Promotion of Religious Freedom and Tolerance**

Religious freedom is a fundamental aspect of human liberty. Fundamental rights allow individuals to profess, practice, and propagate their religion without fear of persecution. By protecting religious diversity, these rights promote tolerance, mutual respect, and peaceful coexistence among different faith communities. Such protections are particularly important in multicultural societies where people of various religious backgrounds live together.

- **Enhancement of National Unity and Social Stability**

A society in which citizens feel secure and respected is more likely to remain peaceful and stable. Fundamental rights foster a sense of belonging by assuring citizens that their freedoms and interests are protected by the Constitution. When people trust that they will receive equal treatment and justice, they are more likely to support state institutions and contribute positively to national development. Therefore, fundamental rights serve as an important instrument for strengthening national integration and political stability.

- **Encouragement of Good Governance and Accountability**

Fundamental rights promote transparency and accountability in governance by enabling citizens to access information, criticize public policies, and demand responsible conduct from

public officials. A free press, independent judiciary, and active civil society all depend upon the protection of fundamental rights. These mechanisms help reduce corruption, improve public administration, and ensure that government actions remain subject to public scrutiny.

- **Alignment with International Human Rights Standards**

In the contemporary world, states are expected to uphold internationally recognized human rights norms. Fundamental rights incorporated in national constitutions reflect the principles enshrined in international instruments such as the Universal Declaration of Human Rights (1948). By guaranteeing these rights, states demonstrate their commitment to human dignity, social justice, and global standards of civilized governance.

Fundamental Rights and the Constitution of Pakistan

The Constitution of the Islamic Republic of Pakistan, 1973, serves as the supreme legal framework for the protection of fundamental rights and freedoms of its citizens. The constitutional commitment to fundamental rights has evolved gradually since the creation of Pakistan. Its foundation was laid by the **Objectives Resolution of 1949**, which declared that the state would ensure democracy, freedom, equality, tolerance, and social justice in accordance with the principles of Islam. The Resolution also emphasized that adequate provisions would be made for safeguarding the legitimate rights and interests of minorities and for guaranteeing fundamental rights to all citizens. These principles were subsequently incorporated into the **Constitution of 1956**, Pakistan's first constitution, which formally recognized a range of fundamental rights, including equality before law, freedom of speech, freedom of religion, and protection of life and property. The **Constitution of 1962** continued this constitutional tradition by retaining and expanding several fundamental rights, although certain limitations existed under the presidential system. The constitutional development reached its most comprehensive form in the **Constitution of 1973**, which consolidated and strengthened the protection of fundamental rights within a democratic parliamentary framework.

Drawing upon both universal human rights principles and the Islamic ideals of justice, equality, and human dignity, the 1973 Constitution guarantees an extensive range of rights designed to protect individuals from arbitrary state action and discrimination. These rights are enshrined in **Part II, Chapter 1 (Articles 8–28)** of the Constitution and include the protection of life and liberty, equality before law, freedom of speech and expression, freedom of religion, freedom of association, freedom of movement, protection of property, and the right to education. The

Constitution not only recognizes these rights but also provides effective legal mechanisms for their enforcement through an independent judiciary. Furthermore, **Article 8** declares that any law inconsistent with fundamental rights shall be void to the extent of such inconsistency, thereby establishing the supremacy of constitutional rights over ordinary legislation. Thus, the constitutional history of Pakistan demonstrates a continuous commitment to the protection of citizens' rights, beginning with the Objectives Resolution and culminating in the comprehensive framework of the 1973 Constitution. Fundamental rights, therefore, constitute the cornerstone of Pakistan's constitutional order and play a vital role in promoting democracy, the rule of law, social justice, and human dignity. Now we will discuss these articles one by one for better understanding.

- **Protection of life and liberty (Article 9)**

Article 9 of the Constitution of Pakistan guarantees the protection of life and liberty of every citizen, meaning that no person can be deprived of life or personal freedom except in accordance with law. Liberty includes not only physical freedom but also the right to live with dignity, such as the freedom to eat, sleep, work, and move without unlawful restrictions or bodily restraints. This right is applied in various legal situations, including arrest and detention, which must follow proper legal procedures, and conviction and sentence, which are only valid after a fair trial.

- **Protection provided as to Confinement and Custody (Article 10)**

The article 10 provides protection to every citizen of state that no one may be detained without due process of law. If anyone is arrested may be produced before the Magistrate within twenty-four hours of such arrest. Said article relates to safeguards against arrest and detention. It recognizes the right of the Government to arrest and detain. The first right of a person, after his arrest and detention is that he must be informed as to why he has been arrested. The detaining authority will have to give its reasons for detention. This duty of the State gives right to the individual to seek the remedy against the arrest. So, the first right is that he must be allowed the Lawyer facility.

- **Slavery, Forced Labor, Etc. Prohibited (Article 11)**

Article 11 declared that any kind of slavery, forced labour etc. is prohibited in Pakistan. To some extent, has been redundant in the sense that no slavery is in existence in this country. So

far as the forced labour is concerned, that too is prohibited⁴⁵ except in case of compulsory services for public purposes or by a person undergoing punishment for an offence, which shows that from prisoners, the State can get forced labour. Usually, consent is given by the Guardian regarding his child, and the child works in such factories, but as no remedy is sought against, therefore, it is to be according to law, whereas it is in derogation of this fundamental right. In Indian **Safeguard against the double jeopardy (Article 12 & 13):**

The Article 12&13 declared that no person is to be prosecuted twice for the same offence, and this principle is called “double jeopardy”. This rule is based on the principle of ‘Natural Justice’, and not on the principle of ‘Equity’, which itself is based on just, fair and good conscious. The Constitution provide safeguard against double jeopardy. No one can be convicted twice for the same act. It shows that this shelter has been assured in contradiction of retrospective penalty, which is only possible in criminal laws.

- **Safeguard as to Self-respect (Article 14)**

Article 14 of the Constitution of Pakistan guarantees the dignity of man and the privacy of the home. It ensures that every individual is treated with respect and is protected from any form of humiliation, torture, or inhuman treatment. This article clearly prohibits authorities from subjecting any person to physical or mental abuse without lawful justification.

- **Safeguard as to Freedom of Movement (Article 15)**

Article 15 declared that each resident should have the privilege to stay in, and, subject to any sensible confinement forced by law in people in general intrigue, enter and move uninhibitedly all through every part of State and live in any part of State.

- **Freedom of Assembly (Article 16)**

Article 16 declared that citizens have the right to gather peacefully for meetings, protests, and demonstrations. This right strengthens democratic participation and public expression. However, assemblies must remain peaceful and within legal boundaries.

- **Freedom of Association (Article 17)**

Article 17 declared that every citizen of the State has the right to make association for their well fare in a peaceful manner. A group of persons who join for some common purpose or object is called an association. A Union is also association, which is created by law, and which

is a special type of association. A society is an association which is also to be recognized by law. A political party is an association. Thus, there are many types of associations, and the Constitution guarantees the right to form associations.

- **Freedom of Trade, Business, and Profession (Article 18)**

Article 18 declared every citizen has the right to choose any lawful profession or business. It ensures economic freedom and the ability to earn a livelihood. The state may regulate professions for public interest and safety.

- **Safeguard as to Freedom of Speech (Article 19)**

Article 19 declared every citizen of the State has equal freedom of speech. Speech may not be derogatory or violent against any person expressly or impliedly. However, the right to speak freely and opportunity of press are liable to sensible confinements forced by law. If he unjustly attacks an individual, the person defamed may sue for damages, and if the words, on the other hand, are written or printed and shows treason or immorality, he can be tried for the offence of misdemeanour either by information or indictment.

- **Right to Information (Article 19A)**

Article 19A declared Citizens have the right to access information from public institutions. It promotes transparency and accountability in government. This right strengthens good governance and reduces corruption.

- **Freedom of Religion (Article 20)**

Article 20 declared Every person is free to follow, practice, and promote their religion. It ensures respect for religious diversity in society. The state protects this freedom equally for all citizens.

- **Protection Against Religious Taxation (Article 21)** Article 21 declared no citizen can be forced to pay taxes for another religion. It protects religious freedom and financial fairness. The state ensures no misuse of public funds for religious coercion.

- **Rights in Educational Institutions (Article 22)**

Article 21 declared no student can be forced to receive religious education of another faith. It protects religious identity in educational settings. Students are free to learn according to their own beliefs.

- **Right to Acquire Property (Article 23)**

The Article 23 declared Every citizen has the right to buy, own, and possess property. It supports economic independence and personal security. This right is exercised according to law.

- **Protection of Property Rights (Article 24)**

Article 24 declared no one's property can be taken without legal justification. If taken for public purpose, fair compensation must be given. It protects citizens from arbitrary state action.

- **Equality of Citizens (Article 25)**

Article 25 declared that all citizens are equal before the law. No discrimination is allowed on any social or personal basis. The state must provide equal protection to everyone.

- **Right to Education (Article 25 A)**

Article 25A declared that the state must provide free and compulsory education for children aged 5 to 16. It ensures equal educational opportunities for all. This right promotes national development and literacy.

- **Equal Access to Public Places (Article 26)**

Article 26 declared that all citizens can use public places without discrimination. This includes parks, libraries, and public facilities. It promotes equality and social inclusion.

- **Equality in Public Employment (Article 27)**

Article 27 declared that all citizens have equal opportunity in government jobs. No unfair preference or discrimination is allowed. It ensures merit-based recruitment in public service.

- **Preservation of Language, Culture, and Heritage (Article 28)**

Article 28 declared that citizens have the right to preserve their language and culture. It protects cultural identity and diversity in society. The state encourages respect for all cultural traditions.

Enforcement Mechanisms of Fundamental Rights in Pakistan

In Pakistan, fundamental rights are not only written in the Constitution but are also protected through strong enforcement mechanisms. The judiciary is the main guardian of these rights, especially the High Courts and the Supreme Court. Under Article 199, High Courts can issue writs such as Habeas Corpus, Mandamus, Prohibition, Certiorari, and Quo Warranto to protect citizens from illegal actions of the state or public authorities. These writs ensure that no person is unlawfully detained, that public officials perform their duties, and that illegal decisions can be reviewed and corrected. The Supreme Court, under Article 184(3), also has the power to directly take notice of matters involving public importance related to fundamental rights. In addition to courts, institutions such as the Federal Ombudsman, National Commission for Human Rights (NCHR), and provincial human rights bodies help in addressing complaints and protecting citizens' rights. Together, these mechanisms ensure that fundamental rights are not just theoretical promises but practical protections available to every citizen of Pakistan.

Suspension of Rights during Emergency in Pakistan

The Constitution of Pakistan also allows the temporary suspension or limitation of certain fundamental rights during a national emergency, but only under strict constitutional procedures. When the country faces serious threats such as war, internal disturbance, or a breakdown of law and order, the President may declare an emergency under Articles 232, 233, or 234. During such situations, some rights may be restricted to maintain national security, public order, and stability of the state. However, this suspension is not absolute or unlimited, as it is subject to constitutional safeguards and parliamentary approval. Even during emergencies, the core principles of justice and human dignity cannot be completely removed.

The purpose of such suspension is not to eliminate rights permanently but to temporarily balance individual freedoms with the survival and security of the state. In Pakistan's constitutional framework, this provision reflects the idea that rights and state security must operate in harmony during extraordinary circumstances.

Conclusion

Human rights and fundamental rights form the foundation of a just, democratic, and civilized society. At the global level, human rights emphasize the dignity and equality of all human beings, while at the national level, the Constitution of Pakistan transforms these principles into enforceable fundamental rights under Articles 8–28. These rights protect citizens' life, liberty, equality, religion, education, and property, while also placing limits on the powers of the state. Through constitutional safeguards, judicial enforcement, and institutional support, Pakistan ensures that these rights are not merely theoretical but practically protected. However, during extraordinary situations such as emergencies, certain rights may be temporarily restricted to maintain national security, though always under constitutional control. Overall, the lecture highlights that the protection of rights is essential for strengthening democracy, rule of law, and social justice in Pakistan.

